

(d) refers to, or names, or calls, his place of worship as ‘Masjid’ ;

shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

(2) Any person of the Qadiani group or Lahori group (who call themselves ‘Ahmadis’ or by any other name) who by words, either spoken or written, or by visible representation, refers to the mode or form of call to prayers followed by his faith as ‘Azan’, or recites *Azan* as used by the Muslims, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

298C. Person of Qadiani group, etc., calling himself a Muslim or preaching or propagating his faith. Any person of the Qadiani group or the Lahori group (who call themselves ‘Ahmadis’ or by any other name), who, directly or indirectly, poses himself as a Muslim, or calls, or refers to, his faith as Islam, or preaches or propagates his faith, or invites others to accept his faith, by words, either spoken or written, or by visible representations, or in any manner whatsoever outrages the religious feelings of Muslims, shall be punished with imprisonment of either description for a term which may extend to three years and shall also be liable to fine.]

CHAPTER XVI

OF OFFENCES AFFECTING THE HUMAN BODY

OF OFFENCES AFFECTING LIFE

¹[299. **Definitions.** In this Chapter, unless there is anything repugnant in the subject or context,—

- (a) “adult” means a person who has attained the age of eighteen years;
- (b) “*arsh*” (ارش) means the compensation specified in this Chapter to be paid to the victim or his heirs under this chapter;
- (c) “authorised medical officer” means a medical officer or a Medical Board, howsoever designated, authorised by the Provincial Government;
- (d) “*daman*” (ضمان) means the compensation determined by the court to be paid by the offender to the victim for causing hurt not liable to *arsh* (ارش) ;
- (e) “*diyat*” (ديت) means the compensation specified in section 323 payable to the heirs of the victim;
- ²[(ee) “*fasad-fil-arz*” includes the past conduct of the offender or whether he has any previous conviction or the brutal or shocking manner in which the offence has been committed which is outrageous to the public conscience or if the offender is considered a potential danger to the community or if the offence has been committed in the name or on the pretext of honour;]

¹Subs. by Act II of 1997, s.7 (for sections 299 to 338).

²Ins. by Act (XLIII of 2016), s. 2.

- (f) “Government” means the Provincial Government;
- (g) “*ikrah-e-tam*” (اکراه تام) means putting any person, his spouse or any of his blood relations within the prohibited degree of marriage in fear of instant death or instant permanent impairing of any organ of the body or instant fear of being subjected to sodomy or *zina-bil-jabr*;
- (h) “*ikrah-e-naqis*” (اکراه ناقص) means any form of duress which does not amount to *ikrah-i-tam*;
- (i) “minor” means a person who is not an adult;
- ¹[(ii) “offence committed in the name or on the pretext of honour” means an offence committed in the name or on the pretext of *karo kari*, *siyah kari* or similar other customs or practices;]
- (j) “*qatl*” (قتل) means causing death of a person;
- (k) “*qisas*” (قصاص) means punishment by causing similar hurt at the same part of the body of the convict as he has caused to the victim or by causing his death if he has committed *qatl-i-amd*, in exercise of the right of the victim or a *wali* ;
- (l) “*ta’zir*” (تعزیر) means punishment other than *qisas* (قصاص), *diyat* (دییت), *arsh* (ارش) or *daman* (ضمان) ; and
- (m) “*wali*” (ولی) means a person entitled to claim *qisas*.

300. Qatl-e-amd. Whoever, with the intention of causing death or with the intention of causing bodily injury to a person, by doing an act which in the ordinary course of nature is likely to cause death, or with the knowledge that his act is so imminently dangerous that it must in all probability cause death, causes the death of such person, is said to commit *qatl-e-amd*.

301. Causing death of person other than the person whose death was intended. Where a person, by doing anything which he intends or knows to be likely to cause death, causes death of any person whose death he neither intends nor knows himself to be likely to cause such an act committed by the offender shall be liable for *qatl-e-amd*.

302. Punishment of qatl-i-amd. Whoever commits *qatl-e-amd* shall, subject to the provisions of this Chapter be—

- (a) punished with death as *qisas*;
- (b) punished with death for imprisonment for life as *ta’zir* having regard to the facts and circumstances of the case, if the proof in either of the forms specified in section 304 is not available; or
- (c) punished with imprisonment of either description for a term which may extend to twenty-five years, where according to the Injunctions of Islam the punishment of *qisas* is not applicable ²[:]

¹Ins. by Act 1 of 2005, s. 2.

²Subs. by Act XLIII of 2016, s.3.

¹[Provided that nothing in clause (c) shall apply where the principle of *fasad-fil-arz* is attracted and in such cases only clause (a) or clause (b) shall apply.]

303. Qatl committed under ikrah-i-tam or ikrah-i-naqis. Whoever commits qatl,—

- (a) under *ikrah-i-tam* shall be punished with imprisonment for a term which may extend to twenty-five years but shall not be less than ten years and the person causing *ikrah-i-tam* shall be punished for the kind of *qatl* committed as a consequence of his *ikrah-i-tam*; or
- (b) under '*ikrah-i-naqis*' shall be punished for the kind of *qatl* committed by him and the person causing '*ikrah-i-naqis*' shall be punished with imprisonment for a term which may extend to ten years.

304. Proof of qatl-i-amd liable to qisas, etc.— (1) Proof of *qatl-i-amd* shall be in any of the following forms, namely:—

- (a) the accused makes before a court competent to try the offence a voluntary and true confession of the commission of the offence; or
 - (b) by the evidence as provided in Article 17 of the Qanun-e-Shahadat, 1984 (P.O. No. 10 of 1984).
- (2) The provisions of sub-section (1) shall, *mutatis mutandis*, apply to a hurt liable to *qisas*.

305. Wali.— In case of a *qatl*, the *wali* shall be—

- (a) the heirs of the victim, according to his personal law ²[but shall not include the accused or the convict in case of *qatl-i-amd* if committed in the name or on the pretext of honour]; and
- (b) the Government, if there is no heir.

306. Qatl-i-amd not liable to qisas.— *Qatl-i-amd* shall not be liable to *qisas* in the following cases, namely:—

- (a) when an offender is a minor or insane:

Provided that, where a person liable to *qisas* associates himself in the commission of the offence with a person not liable to *qisas* with the intention of saving himself from *qisas*, he shall not be exempted from *qisas*;

- (b) when an offender causes death of his child or grandchild, how low-so-ever; and
- (c) when any *wali* of the victim is a direct descendant, how low-so-ever, of the offender.

307. Cases in which Qisas for qatl-e-amd shall not be enforced.— (1) *Qisas* for *qatl-i-amd* shall not be enforced in the following cases, namely:—

¹Subs. by Act XLIII of 2016, s.3.

²Added by Act I of 05, s.4.

- (a) when the offender dies before the enforcement of *qisas* ;
- (b) when any *wali* voluntarily and without duress, to the satisfaction of the court, waives the right of *qisas* under section 309 or compounds under section 310; and
- (c) when the right of *qisas* devolves on the offender as a result of the death of the *wali* of the victim, or on the person who has no right of *qisas* against the offender.

(2) To satisfy itself that the *wali* has waived the right of *qisas* under section 309 or compounded the right of *qisas* under section 310 voluntarily and without duress the court shall take down the statement of the *wali* and such other persons as it may deem necessary on oath and record an opinion that it is satisfied that the waiver or, as the case may be, the composition, was voluntary and not the result of any duress.

Illustrations

- (i) A kills Z, the maternal uncle of his son B. Z has no other *wali* except D, the wife of A. D has the right of *qisas* from A. But if D dies, the right of *qisas* shall devolve on her son B who is also the son of the offender A. B cannot claim *qisas* against his father. Therefore, the *qisas* cannot be enforced.
- (ii) B kills Z, the brother of her husband A. Z has no heir except A. Here A can claim *qisas* from his wife B. But if A dies, the right of *qisas* shall devolve on his son D who is also son of B, the *qisas* cannot be enforced against B.

308. Punishment in *qatl-i-amd* not liable to *qisas*, etc.— (1) Where an offender guilty of *qatl-i-amd* is not liable to *qisas* under section 306 or the *qisas* is not enforceable under clause (c) of section 307, he shall be liable to *diyat* :

Provided that, where the offender is minor or insane, *diyat* shall be payable either from his property or, by such person as may be determined by the court :

Provided further that where at the time of committing *qatl-e-amd* the offender being a minor, had attained sufficient maturity or being insane, had a lucid interval, so as to be able to realize the consequences of his act, he may also be punished with imprisonment of either description for a term which may extend ¹[twenty-five years] as *ta'zir*:

Provided further that, where the *qisas* is not enforceable under clause (c) of section 307, the offender shall be liable to *diyat* only if there is any *wali* other than offender and if there is no *wali* other than the offender, he shall be punished with imprisonment of either description for a term which may extend to ¹[twenty-five years] as *ta'zir*.

(2) Notwithstanding anything contained in sub-section (1), the court, having regard to the facts and circumstances of the case in addition to the punishment of *diyat*, may punish the offender with imprisonment of either description for a term which may extend to ¹[twenty-five years], as *ta'zir*.

¹Subs. by Act I of 05,s.5.

309. Waiver-Afw (عفو) of qisas in qatl-i-amd.— (1) In the case of *qatl-i-amd*, an adult sane *wali* may, at any time and without any compensation, waive his right of *qisas*:

Provided that the right of *qisas* shall not be waived-

- (a) where the Government is the *wali* ; or
- (b) where the right of *qisas* vests in a minor or insane ¹[:]

¹[Provided further that where the principle of *fasad-fil-arz* is attracted, waiver of *qisas* shall be subject to the provisions of section 311.]

- (2) Where a victim has more than one *wali*, anyone of them may waive his right of *qisas*:

Provided that the *wali* who does not waive the right of *qisas* shall be entitled to his share of *diyat*.

- (3) Where there are more than one victim, the waiver of the right of *qisas* by the *wali* of one victim shall not affect the right of *qisas* of the *wali* of the other victim.

- (4) Where there are more than one offenders, the waiver of the right of *qisas* against one offender shall not affect the right of *qisas* against the other offender.

310. Compounding of qisas (Sulh) (صلح) in qatl-i- amd.— (1) In the case of *qatl-i-amd*, an adult sane *wali* may, at any time on accepting *badal-i-sulh*, compound his right of *qisas*:

²[Provided that a female shall not be given in marriage or otherwise in *badal-i-sulh*] ¹[:]

¹[Provided further that where the principle of *fasad-fil-arz* is attracted, compounding of the right of *qisas* shall be subject to the provisions of section 311.]

- (2) Where a *wali* is a minor or an insane, the *wali* of such minor or insane *wali* may compound the right of *qisas* on behalf of such minor or insane *wali*:

Provided that the value of *badal-i-sulh* shall not be less than the value of *diyat*.

- (3) Where the Government is the *wali*, it may compound the right of *qisas*:

Provided that the value of *badal-i-sulh* shall not be less than the value of *diyat*.

- (4) Where the *badal-i-sulh* is not determined or is a property or a right the value of which cannot be determined in terms of money under *Shari'ah* (شریعه) the right of *qisas* shall be deemed to have been compounded and the offender shall be liable to *diyat*.

- (5) *Badal-i-sulh* may be paid or given on demand or on a deferred date as may be agreed upon between the offender and the *wali*.

Explanation.— In this section, *Badal-i-sulh* means the mutually agreed compensation according to *Shari'ah* to be paid or given by the offender to a *wali* in cash or in kind or in the form of moveable or immovable property.

¹Subs. & added by Act XLIII of 2016, ss. 4-5.

²Subs. by Act I of 2005, s. 6.

¹[310A. **Punishment for giving a female in marriage or otherwise in *badla-e-sulh*, *wanni* or *swara*.** Whoever gives a female in marriage or otherwise compels her to enter into marriage, as *badla-e-sulh*, *wanni*, or *swara* or any other custom or practice under any name, in consideration of settling a civil dispute or a criminal liability, shall be punished with imprisonment of either description for a term which may extend to seven years but shall not be less than three years and shall also be liable to fine of five hundred thousand rupees.]

²[311. ***Ta'zir* after waiver or compounding of right of *qisas* in *qatl-i-amd*.**— Where all the *wali* do not waive or compound the right of *qisas*, or if the principle of *fasad-fil-arz* is attracted, the court may, having regard to the facts and circumstances of the case, punish an offender against whom the right of *qisas* has been waived or compounded with death or imprisonment for life or imprisonment of either description for a term of which may extend to fourteen years as *ta'zir*:

Provided that if the offence has been committed in the name or on the pretext of honour, the punishment shall be imprisonment for life.]

312. *Qatl-i-amd* after waiver or compounding of *qisas*.— Where a *wali* commits *qatl-i-amd* of a convict against whom the right of *qisas* has been waived under section 309 or compounded under section 310, such *wali* shall be punished with—

- (a) *qisas*, if he had himself waived or compounded the right of *qisas* against the convict or had knowledge of such waiver of composition by another *wali*; or
- (b) *diyat*, if he had no knowledge of such waiver or composition.

313. *Right of qisas in qatl-i-amd*.— (1) Where there is only one *wali*, he alone has the right of *qisas* in *qatl-i-amd* but, if there are more than one, the right of *qisas* vests in each of them.

(2) If the victim—

- (a) has no *wali*, the Government shall have the right of *qisas*; or
- (b) has no *wali* other than a minor or insane or one of the *wali* is a minor or insane, the father or if he is not alive the paternal grandfather of such *wali* shall have the right of *qisas* on his behalf:

Provided that, if the minor or insane *wali* has no father or paternal grandfather, how high-so-ever, alive and no guardian has been appointed by the court, the Government shall have the right of *qisas* on his behalf.

314. *Execution of qisas in qatl-i-amd*.— (1) *Qisas* in *qatil-i-amd* shall be executed by a functionary of the Government by causing death of the convict as the court may direct.

(2) *Qisas* shall not be executed until all the *wali* are present at the time of execution, either personally or through their representatives authorised by them in writing in this behalf:

Provided that where a *wali* or his representative fails to present himself on the date, time and place of execution of *qisas* after having been informed of the date, time and place as certified by the

¹Subs. by Act 26 of 2011, s.2

²Subs. by Act XLIII of 2016, s. 6.

court, an officer authorised by the court shall give permission for the execution of *qisas* and the Government shall cause execution of *qisas* in the absence of such *wali*.

(3) If the convict is a woman who is pregnant, the court may, in consultation with an authorised medical officer, postpone the execution of *qisas* upto a period of two years after the birth of the child and during this period she may be released on bail on furnishing of security to the satisfaction of the court or, if she is not so released she shall be dealt with as if sentenced to simple imprisonment.

315. *Qatl shibh-i-amd.*— Whoever, with intent to cause harm to the body or mind of any person, causes the death of that or of any other person by means of a weapon or an act which in the ordinary course of nature is not likely to cause death is said to commit *qatl-shibh-i-'amd*.

Illustration

A in order to cause hurt strikes Z with a stick or stone which in the ordinary course of nature is not likely to cause death. Z dies as a result of such hurt. A shall be guilty of *qatl shibh-i-'amd*.

316. *Punishment for qatl shibh-i-'amd.*— Whoever commits *qatl shibh-i-amd* shall be liable to *diyat* and may also be punished with imprisonment of either description for a term which may extend to ¹[twenty five years] as *ta'zir*.

317. *Person committing qatl debarred from succession.*— Where a person committing *qatl-i-'amd* or *qatl shibh-i-'amd* is an heir or a beneficiary under a will, he shall be debarred from succeeding to the estate of the victim as an heir or a beneficiary.

318. *Qatl-i-khata.*— Whoever, without any intention to cause the death of, or cause harm to, a person causes death of such person, either by mistake of act or by mistake of fact, is said to commit *qatl-i-khata*.

Illustration

- (a) A aims at a deer but misses the target and kills Z who is standing by. A is guilty of *qatl-i-khata*.
- (b) A shoots at an object to be a boar but it turns out to be a human being. A is guilty of *qatl-i-khata*.

319. *Punishment for qatl-i-khata.*— Whoever commits *qatl-i-khata* shall be liable to *diyat*:

Provided that, where *qatl-i-khata* is committed by any rash or negligent act, other than rash or negligent driving, the offender may, in addition to *diyat*, also be punished with imprisonment of either description for a term which may extend to five years as *ta'zir*.

320. *Punishment for qatl-i-khata by rash or negligent driving.*— Whoever commits *qatl-i-khata* by rash or negligent driving shall, having regard to the facts and circumstances of the case, in addition to *diyat*, be punished with imprisonment of either description for a term which may extend to ten years.

¹Subs. by Act I of 2005, s. 9 for "Fourteen Years".

321. *Qatl-bis-sabab.*— Whoever, without any intention to cause death of, or cause harm to, any person, does any unlawful act which becomes a cause for the death of another person, is said to commit *qatl-bis-sabab*.

Illustration

A unlawfully digs a pit in the thoroughfare, but without any intention to cause the death of, or harm to, any person. B while passing from there falls in it and is killed. A has committed *qatl-bis-sabab*.

322. *Punishment for qatl-bis-sabab.*— Whoever commits *qatl-bis-sabab* shall be liable to *diyat*.

323. *Value of diyat.*— (1) The court shall, subject to the Injunctions of Islam as laid down in the Holy Quran and Sunnah and keeping in view the financial position of the convict and the heirs of the victim, fix the value of *diyat* which shall not be less than the value of thirty thousand six hundred and thirty grams of silver.

(2) For the purpose of sub-section (1), the Federal Government shall, by notification in the official Gazette, declare the value of silver, on the first day of July each year or on such date as it may deem fit, which shall be the value payable during a financial year.

324. *Attempt to commit qatl-i-amd.*— Whoever does any act with such intention or knowledge, and under such circumstances, that, if he by that act caused *qatl*, he would be guilty of *qatl-i-amd*, shall be punished with imprisonment for either description for a term which may extend to ten year ¹[but shall not be less than five years if the offence has been committed in the name or on the pretext of honour] and shall also be liable to fine, and, if hurt is caused to any person by such act, the offender shall, in addition to the imprisonment and fine as aforesaid, be liable to the punishment provided for the hurt caused:

Provided that, where the punishment for the hurt is *qisas* which is not executable, the offender shall be liable to *arsh* and may also be punished with imprisonment of either description for a term which may extend to seven years.

325. ²[* * THE PAKISTAN CODE * *]

326. *Thug.*— Whoever shall have been habitually associated with any other or others for the purpose of committing robbery or child-stealing by means of or accompanied with *qatl*, is a thug.

327. *Punishment.*— Whoever is a thug, shall be punished with imprisonment for life and shall also be liable to fine.

328. *Exposure and abandonment of child under twelve years by parent or person having care of it.*— Whoever being the father or mother of a child under the age of twelve years, or having the care of such child, shall expose or leave such child in any place with the intention of wholly abandoning such child, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

¹Ins. by Act I of 2005, s. 10.

²Omitted by Act XXXVII of 2022, s.2.

Explanation.— This section is not intended to prevent the trial of the offender for *qatl-i-amd* or *qatl-i-shibh-i-amd* or *qatl-bis-sabab*, as the case may be, if the child dies in consequence of the exposure.

¹[328A. Cruelty to a child.— Whoever willfully assaults, ill-treats, neglects, abandons or does an act of omission or commission, that results in or has, potential to harm or injure the child by causing physical or psychological injury to him shall be punished with imprisonment of either description for a term which shall not be less than one year and may extend upto three years, or with fine which shall not be less than twenty-five thousand rupees and may extend upto fifty thousand rupees, or with both.]

329. Concealment of birth by secret disposal of dead body.— Whoever, by secretly burying or otherwise disposing of the dead body of a child whether such child dies before or after or during its birth, intentionally conceals or endeavours to conceal the birth shall be punishable with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

330. Disbursement of diyat.— The *diyat* shall be disbursed among the heirs of the victim according to their respective shares in inheritance:

Provided that, where an heir foregoes his share, the *diyat* shall not be recovered to the extent of his share.

331. Payment of diyat.— (1) The *diyat* may be made payable in lump sum or in instalments spread over a period of ²[five years] from the date of the final judgement.

(2) Where a convict fails to pay *diyat* or any part thereof within the period specified in subsection (1), the convict may be kept in jail and dealt with in the same manner as if sentenced to simple imprisonment until the *diyat* is paid full or may be released on bail if he furnishes security ²[or surety] equivalent to the amount of *diyat* to the satisfaction of the court ²[or may be released on parole as may be prescribed by the rule].

(3) Where a convict dies before the payment of *diyat* or any part thereof, it shall be recovered from his estate.

332. Hurt.— (1) Whoever causes pain, harm, disease, infirmity or injury to any person or impairs, disables ³[, disfigures, defaces]or dismembers any organ of the body or part thereof of any person without causing his death, is said to cause hurt.

(2) The following are the kinds of hurt:—

- | | | |
|-----|----------------------------------|--------------------|
| (a) | <i>Itlaf-i-udw;</i> | (اتلاف عضو) |
| (b) | <i>itlaf-i-salahiyyat-i-udw;</i> | (اتلاف صلاحیت عضو) |
| (c) | <i>shajjah;</i> | (شجہ) |
| (d) | <i>jurh</i> | (جرح) ; and |
| (e) | all kinds of other hurts. | |

¹Ins. by Act X (Second Amdt.) of 2016, s. 5.

²Subs. ins. & added by Act XV of 2010, s. 2 (w.e.f. 3-10-2007).

¹[*Explanation.*— disfigure means disfigurement of face or disfigurement or dismemberment of any organ or any part of the organ of the human body which impairs or injures or corrodes or deforms the symmetry or appearance of a person.]

333. *Itlaf-i-udw.*— Whoever dismembers, amputates, severs any limb or organ of the body of another person is said to cause *Itlaf-i-udw*.

334. *Punishment for itlaf-i-udw.*— Whoever by doing any act with the intention of thereby causing hurt to any person, or with the knowledge that he is likely thereby to cause hurt to any person causes *itlaf-i-udw* of any person, shall, in consultation with the authorised medical officer, be punished with *qisas*, and if the *qisas* is not executable keeping in view the principles of equality in accordance with the Injunctions of Islam, the offender shall be liable to *arsh* and may also be punished with imprisonment of either description for a term which may extend to ten years as *ta'zir*.

335. *Itlaf-i-salahiyyat-i-udw.*— Whoever destroys or permanently impairs the functioning, power or capacity of an organ of the body of another person, or causes permanent disfigurement is said to cause *itlaf-i-salahiyyat-i-udw*.

336. *Punishment for itlaf-i-salahiyyat-i-udw.*— Whoever, by doing any act with the intention of causing hurt to any person, or with the knowledge that he is likely to cause hurt to any person, causes *itlaf-i-salahiyyat-i-udw* of any person, shall, in consultation with the authorised medical officer, be punished with *qisas* and if the *qisas* is not executable keeping in view the principles of equality in accordance with the Injunctions of Islam, the offender shall be liable to *arsh* and may also be punished with imprisonment of either description for a term which may extend to ten years as *ta'zir*.

1[336A. *Hurt caused by corrosive substance.*— Whoever with the intention or knowingly causes or attempts to cause hurt by means of a corrosive substance or any substance which is deleterious to human body when it is swallowed, inhaled, comes into contact or received into human body or otherwise shall be said to cause hurt by corrosive substance:

Explanation.— In this sub-section, unless the context otherwise requires, “corrosive substance” means a substance which may destroy, cause hurt, deface or dismember any organ of the human body and includes every kind of acid, poison, explosive or explosive substance, heating substance, noxious thing, arsenic or any other chemical which has a corroding effect and which is deleterious to human body.

336B. *Punishment for hurt by corrosive substance.*— Whoever causes hurt by corrosive substance shall be punished with imprisonment for life or imprisonment of either description which shall not be less than fourteen years and a minimum fine of one million rupees.]

337. *Shajjah.*— (1) Whoever causes, on the head or face of any person, any hurt which does not amount to *itlaf-i-udw* or *itlaf-i-salahiyyat-i-udw*, is said to cause *shajjah*.

(2) The following are the kinds of *shajjah*, namely:—

- | | | |
|-----|---------------------------|--------------|
| (a) | <i>Shajjah-i-Khafifah</i> | (شجہ خفیفہ); |
| (b) | <i>Shajjah-i-mudihah</i> | (شجہ موضعہ); |

¹Ins. & added by Act XXV (Second Amdt.) of 2011, s.2-3.

- | | | |
|-----|-----------------------------|----------------|
| (c) | <i>Shajjah-i-hashimah</i> | (شجہ ہاشمہ); |
| (d) | <i>Shajjah-i-munaqqilah</i> | (شجہ منقولہ); |
| (e) | <i>Shajjah-i-ammah</i> | (شجہ امہ); and |
| (f) | <i>Shajjah-i-damighah.</i> | (شجہ دامعہ) |

(3) Whoever causes *shajjah*,—

- (i) without exposing bone of the victim, is said to cause *shajjah-i-khafifah* ;
- (ii) by exposing any bone of the victim without causing fracture, is said to cause *shajjah-i-mudihah* ;
- (iii) by fracturing the bone of the victim, without dislocating it, is said to cause *shajjah-i-hashimah* ;
- (iv) by causing fracture of the bone of the victim and thereby bone is dislocated, is said to cause *shajjah-i-munaqqilah* ;
- (v) by causing fracture of the skull of the victim so that the wound touches the membrane of the brain, is said to cause *shajjah-i-ammah* ; and
- (vi) by causing fracture of the skull of the victim and the wound ruptures the membrane of the brain is said to cause *shajjah-i-damighah*.

337A. Punishment of *shajjah*. Whoever, by doing any act with the intention of thereby causing hurt to any person, or with the knowledge that he is likely thereby to cause hurt to any person, causes—

- (i) *shajjah-i-khafifah* to any person, shall be liable to daman and may also be punished with imprisonment of either description for a term which may extend to two years as *ta'zir*;
- (ii) *shajjah-i-mudihah* to any person, shall, in consultation with the authorised medical officer, be punished with *qisas*, and if the *qisas* is not executable keeping in view the principles of equality in accordance with the Injunctions of Islam, the convict shall be liable to *arsh* which shall be five per cent of the *diyat* and may also be punished with imprisonment of either description for a term which may extend to five years as *ta'zir*;
- (iii) *shajjah-i-hashimah* to any person, shall be liable to *arsh* which shall be ten per cent of the *diyat* and may also be punished with imprisonment of either description for a term which may extend to ten years as *ta'zir*;
- (iv) *shajjah-i-munaqqilah* to any person, shall be liable to *arsh* which shall be fifteen per cent of the *diyat* and may also be punished with imprisonment of either description for a term which may extend to ten years as *ta'zir*;
- (v) *shajjah-i-ammah* to any person, shall be liable to *arsh* which shall be one-third of the *diyat* and may also be punished with imprisonment of either description

for a term which may extend to ten years as *ta'zir* ; and

- (vi) *shajjah-i-damighah* to any person shall be liable to *arsh* which shall be one-half of *diyat* and may also be punished with imprisonment of either description for a term which may extend to fourteen years as *ta'zir*.

337B. *Jurh*.— (1) Whoever causes on any part of the body of a person, other than the head or face, a hurt which leaves a mark of the wound, whether temporary or permanent, is said to cause *jurh*.

- (2) *Jurh* جرْح is of two kinds, namely :—

- (a) Jaifah جائفہ ;and
(b) Ghayr-jaifah. غير جائفہ

337C. *Jaifah*.— Whoever causes *jurh* in which the injury extends to the body cavity of the trunk, is said to cause *jaifah*.

337D. *Punishment for jaifah*.— Whoever by doing any act with the intention of causing hurt to a person or with the knowledge that he is likely to cause hurt to such person, causes *jaifah* to such person, shall be liable to *arsh* which shall be one-third of the *diyat* and may also be punished with imprisonment of either description for a term which may extend to ten years as *ta'zir*.

337E. *Ghayr-jaifah*.— (1) Whoever causes *jurh* which does not amount to *jaifah*, is said to cause *ghayr-jaifah*.

- (2) The following are the kinds of *ghayr-jaifah*, namely:

- (a) *Damiyah*; دامیہ ;
(b) *badi'ah*; باضغہ ;
(c) *mutalahimah*; متلا حصہ ;
(d) *mudihah*; موضعه ;
(e) *hashimah* ہاشمہ ; and
(f) *munaqqilah*. منقلہ ;

- (3) Whoever causes *ghayr-jaifah*—

- (i) in which the skin is ruptured and bleeding occurs, is said to cause *damiyah* ;
(ii) by cutting or incising the flesh without exposing the bone, is said to cause *badi'ah* ;
(iii) by lacerating the flesh, is said to cause *mutalahimah*;
(iv) by exposing the bone, is said to cause *mudihah*;

- (v) by causing fracture of a bone without dislocating it, is said to cause *hashimah*; and
- (vi) by fracturing and dislocating the bone, is said to cause *munaqqilah*.

337F. Punishment of *ghayr-jaifah*. Whoever by doing any act with the intention of causing hurt to any person, or with the knowledge that he is likely to cause hurt to any person, causes—

- (i) *damiyah* to any person, shall be liable to *daman* and may also be punished with imprisonment of either description for a term which may extend to one year as *ta'zir*;
- (ii) *badi'ah* to any person, shall be liable to *daman* and may also be punished with imprisonment of either description for a term which may extend to three years as *ta'zir*;
- (iii) *mutalahimah* to any person, shall be liable to *daman* and may also be punished with imprisonment of either description for a term which may extend to three years as *ta'zir*;
- (iv) *mudihah* to any person, shall be liable to *daman* and may also be punished with imprisonment of either description for a term which may extend to five years as *ta'zir*;
- (v) *hashimah* to any person, shall be liable to *daman* and may also be punished with imprisonment of either description for a term which may extend to five years as *ta'zir*; and
- (vi) *munaqqilah* to any person, shall be liable to *daman* and may also be punished with imprisonment of either description for a term which may extend to seven years as *ta'zir*.

337G. Punishment for hurt by rash or negligent driving. Whoever causes hurt by rash or negligent driving shall be liable to *arsh* or *daman* specified for the kind of hurt caused and may also be punished with imprisonment of either description for a term which may extend to five years as *ta'zir*.

337H. Punishment for hurt by rash or negligent act.—(1) Whoever causes hurt by rash or negligent act, other than rash or negligent driving, shall be liable to *arsh* or *daman* specified for the kind of hurt caused and may also be punished with imprisonment of either description for a term which may extend to three years as *ta'zir*.

(2) Whoever does any act so rashly or negligently as to endanger human life or the personal safety of others, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine, or with both.

337I. Punishment for causing hurt by mistake (*khata*).— Whoever causes hurt by mistake (*Khata*) shall be liable to *arsh* or *daman* specified for the kind of hurt caused.

337J. Causing hurt by means of a poison.— Whoever administers to, or causes to be taken by, any person, any poison or any stupefying, intoxicating or unwholesome drug, or such other thing with intent to cause hurt to such person, or with intent to commit or to facilitate the commission of an

offence, or knowing it to be likely that he will thereby cause hurt may, in addition to the punishment or *arsh* or *daman* provided for the kind of hurt caused, be punished, having regard to the nature of the hurt caused, with imprisonment of either description for a term which may extend to ten years.

337K. Causing hurt to extort confession, or to compel restoration of property.— Whoever causes hurt for the purpose of extorting from the sufferer or any person interested in the sufferer any confession or any information which may lead to the detection of any offence or misconduct, or for the purpose of constraining the sufferer, or any person interested in the sufferer, to restore, or to cause the restoration of, any property or valuable security or to satisfy any claim or demand, or to give information which may lead to the restoration of any property or valuable security shall, in addition to the punishment of *qisas*, *arsh* or *daman*, as the case may be, provided for the kind of hurt caused, be punished, having regard to the nature of the hurt caused, with imprisonment of either description for a term which may extend to ten years as *ta'zir*.

337L. Punishment for other hurt.— (1) Whoever causes hurt, not mentioned hereinbefore, which endangers life or which causes the sufferer is to remain in severe bodily pain for twenty days or more or renders him unable to follow his ordinary pursuits for twenty days or more, shall be liable to *daman* and also be punished with imprisonment of either description for a term which may extend to seven years.

(2) Whoever causes hurt not covered by sub-section (1) shall be punished with imprisonment of either description for a term which may extend to two years, or with *daman* or with both.

337M. Hurt not liable to qisas.— Hurt shall not be liable to *qisas* in the following cases, namely:—

- (a) when the offender is a minor or insane:

Provided that he shall be liable to *arsh* and also to *ta'zir* to be determined by the court having regard to the age of offender, circumstances of the case and the nature of hurt caused;

- (b) when an offender at the instance of the victim causes hurt to him:

Provided that the offender may be liable to *ta'zir* provided for the kind of hurt caused by him;

- (c) when the offender has caused *itlaf-i-udw* of a physically imperfect organ of the victim and the convict does not suffer from similar physical imperfection of such organ:

Provided that the offender shall be liable to *arsh* and may also be liable to *ta'zir* provided for the kind of hurt caused by him; and

- (d) when the organ of the offender liable to *qisas* is missing:

Provided that the offender shall be liable to *arsh* and may also be liable to *ta'zir* provided for the kind of hurt caused by him.

Illustrations

- (i) A amputates the right ear of Z, the half of which was already missing. If A's right ear is perfect, he shall be liable to *arsh* and not *qisas*.
- (ii) If in the above illustration, Z's ear is physically perfect but without power of hearing, A shall be liable to *qisas* because the defect in Z's ear is not physical.
- (iii) If in illustration (i) Z's ear is pierced. A shall be liable to *qisas* because such minor defect is not physical imperfection.

337N. Cases in which *qisas* for hurt shall not be enforced.— (1) The *qisas* for a hurt shall not be enforced in the following cases, namely :—

- (a) when the offender dies before execution of *qisas* ;
- (b) when the organ of the offender liable to *qisas* is lost before the execution of *qisas*:
Provided that offender shall be liable to *arsh*, and may also be liable to *ta'zir* provided for the kind of hurt caused by him;
- (c) when the victim waives the *qisas* or compounds the offence with *badl-i-sulh* ; or
- (d) when the right of *qisas* devolves on the person who cannot claim *qisas* against the offender under this Chapter:

Provided that the offender shall be liable to *arsh*, if there is any *wali* other than the offender, and if there is no *wali* other than the offender he shall be liable to *ta'zir* provided for the kind of hurt caused by him.

(2) Notwithstanding anything contained in this Chapter, in all cases of hurt, the court may, having regard to the kind of hurt caused by him, in addition to payment of *arsh*, award *ta'zir* to an offender who is a previous convict, habitual or hardened, desperate or dangerous criminal ¹[or the offence has been committed by him in the name or on the pretext of honour]¹[:]

¹[Provided that the *ta'zir* shall not be less than one-third of the maximum imprisonment provided for the hurt caused if the offender is a previous convict, habitual, hardened, desperate or dangerous criminal or if the offence has been committed by him in the name or on the pretext of honour.]

337O. Wali in case of hurt. In the case of hurt the *wali* shall be—

- (a) the victim:
Provided that, if the victim is a minor or insane, his right of *qisas* shall be exercised by his father or paternal grandfather, how-high-so-ever;
- (b) the heirs of the victim, if the later dies before the execution of *qisas* ; and
- (c) the Government, in the absence of the victim or the heirs of the victim.

¹Added, subs & ins. by Act I of 05, s.11.

337P. Execution of qisas for hurt.—(1) *Qisas* shall be executed in public by an authorized medical officer who shall before such execution examine the offender and take due care so as to ensure that the execution of *qisas* does not cause the death of the offender or exceed the hurt caused by him to the victim.

(2) The *wali* shall be present at the time of execution and if the *wali* or his representative is not present, after having been informed of the date, time and place by the court an officer authorised by the court in this behalf shall give permission for the execution of *qisas*.

(3) If the convict is a woman who is pregnant, the court may, in consultation with an authorised medical officer, postpone the execution of *qisas* up to a period of two years after the birth of the child and during this period she may be released on bail on furnishing of security to the satisfaction of the court or, if she is not so released, shall be dealt with as if sentenced to simple imprisonment.

337Q. Arsh for single organs. The *arsh* for causing *itlaf* of an organ which is found singly in a human body shall be equivalent to the value of *diyat*.

Explanation.— Nose and tongue are included in the organs which are found singly in a human body.

337R. Arsh for organs in pairs.— The *arsh* for causing *itlaf* of organs found in a human body in pairs shall be equivalent to the value of *diyat* and if *itlaf* is caused to one of such organs the amount of *arsh* shall be one-half of the *diyat* :

Provided that, where the victim has only one such organ or his other organ is missing or has already become incapacitated the *arsh* for causing *itlaf* of the existing or capable organ shall be equal to the value of *diyat*.

Explanation.— Hands, feet, eyes, lips and breasts are included in the organs which are found in a human body in pairs.

337S. Arsh for the organs in quadruplicate. The *arsh* for causing *itlaf* of organs found in a human body in a set of four shall be equal to—

- (a) one-fourth of the *diyat*, if the *itlaf* is one of such organs;
- (b) one-half of the *diyat*, if the *itlaf* is of two of such organs;
- (c) three-fourth of the *diyat*, if the *itlaf* is of three such organs; and
- (d) full *diyat*, if the *itlaf* is of all the four organs.

Explanation.— Eyelids are organs which are found in a human body in a set of four.

337T. Arsh for fingers.— (1) The *arsh* for causing *itlaf* of a finger of a hand or foot shall be one-tenth of the *diyat*.

(2) The *arsh* for causing *itlaf* of a joint of a finger shall be one-thirteenth of the *diyat* :

Provided that where the *itlaf* is of a joint of a thumb, the *arsh* shall be one-twentieth of the *diyat*.

337U. Arsh for teeth.— The *arsh* for causing *itlaf* of a tooth, other than a milk tooth shall be one-twentieth of the *diyat*.

Explanation.— The impairment of the portion of a tooth outside the gum amounts to causing *itlaf* of a tooth.

(2) The *arsh* for causing *itlaf* of twenty or more teeth shall be equal to the value of *diyat*.

(3) Where the *itlaf* is of a milk tooth, the accused shall be liable to *daman* and may also be punished with imprisonment of either description for a term which may extend to one year:

Provided that, where *itlaf* of a milk tooth impedes the growth of a new tooth, the accused shall be liable to *arsh* specified in sub-section (1).

337V. Arsh for hair.— (1) Whoever uproots—

- (a) all the hair of the head, beard, mustaches, eyebrow, eyelashes or any other part of the body shall be liable to *arsh* equal to *diyat* and may also be punished with imprisonment of either description for a term which may extend to three years as *ta'zir*;
- (b) one eyebrow shall be liable to *arsh* equal to one-half of the *diyat* ; and
- (c) one eyelash, shall be liable to *arsh* equal to one-fourth of the *diyat*.

(2) Where the hair of any part of the body of the victim are forcibly removed by any process not covered under sub-section (1), the accused shall be liable to *daman* and imprisonment of either description which may extend to one year.

337W. Merger of arsh.— (1) Where an accused causes more than one hurt, he shall be liable to *arsh* specified for each hurt separately:

Provided that, where

- (a) hurt is caused to an organ, the accused shall be liable to *arsh* for causing hurt to such organ and not for *arsh* for causing hurt to any part of such organ; and
- (b) the wounds join together and form a single wound, the accused shall be liable to *arsh* for one wound.

Illustrations

- (i) A amputates Z's fingers of the right hand and then at the same time amputates that hand from the joint of his wrist. There is separate *arsh* for hand and for fingers. A shall, however, be liable to *arsh* specified for hand only.
- (ii) A twice stabs Z on his thigh. Both the wounds are so close to each other that they form into one wound. A shall be liable to *arsh* for one wound only.

(2) Where, after causing hurt to a person, the offender causes death of such person by committing *qatl* liable to *diyat*, *arsh* shall merge into such *diyat* :

Provided that the death is caused before the healing of the wound caused by such hurt.

337X. Payment of arsh.— (1) The *arsh* may be made payable in a lump sum or in instalments spread over a period of ¹[five years] from the date of the final judgement.

(2) Where a convict fails to pay *arsh* or any part thereof within the period specified in sub-section (1), the convict may be kept in jail and dealt with in the same manner as if sentenced to simple imprisonment until *arsh* is paid in full or may be released on bail if he furnishes security¹[or surety] equal to the amount of *arsh* to the satisfaction of the court ¹[or may be released on parole as may be prescribed by the rules.]

(3) Where a convict dies before the payment of *arsh* or any part thereof, it shall be recovered from his estate.

337Y. Value of daman.— (1) The value of *daman* may be determined by the court keeping in view.

- (a) the expenses incurred on the treatment of victim ;
- (b) loss or disability caused in the functioning or power of any organ; and
- (c) the compensation for the anguish suffered by the victim;.

¹[(1a) The *daman* may be made payable in lump sum or in installments spread over a period of five years from the date of the final judgement.] and

¹[(2) Where a convict fails to pay *daman* or any part thereof within the period specified in sub-section (1a), the convict may be kept in jail and dealt with in the same manner as if sentenced to simple imprisonment until *daman* is paid in full or may be released on bail if he furnishes security or surety equivalent to the amount of *daman* to the satisfaction of the court or may be released on parole as may be prescribed by the rules.]

337Z. Disbursement of arsh or daman.— The *arsh* or *daman* shall be payable to the victim or, if the victim dies, to his heirs according to their respective shares in inheritance.

338. Isqat-i-Hamal(اسقاط حمل).— Whoever causes a woman with child whose organs have not been formed, to miscarry, if such miscarriage is not caused in good faith for the purpose of saving the life of the women, or providing necessary treatment to her, is said to cause '*isqat-i-haml*'.

Explanation.— A women who causes herself to miscarry is within the meaning of this section.

338A. Punishment for Isqat-i-haml.— Whoever causes *isqat-i-haml* shall be liable to punishment as *ta'zir*—

¹Subs, ins & added by Act XV of 2010, ss.3-4 (w.e.f. 3-10-2007).

- (a) with imprisonment of either description for a term which may extend to three years, if *isqat-i-haml* is caused with the consent of the woman; or
- (b) with imprisonment of either description for a term which may extend to ten years, if *isqat-i-haml* is caused without the consent of the woman :

Provided that, if as a result of *isqat-i-haml*, any hurt is caused to woman or she dies, the convict shall also be liable to the punishment provided for such hurt or death as the case may be.

338B. *Isqat-i-janin* (اسقاط جنين).— Whoever causes a woman with child some of whose limbs or organs have been formed to miscarry, if such miscarriage is not caused in good faith for the purpose of saving the life of the woman, is said to cause *isqat-i-janin*.

Explanation.— A woman who causes herself to miscarry is within the meaning of this section.

338C. *Punishment for Isqat-i-janin.*— Whoever causes *Isqat-i-janin* shall be liable to—

- (a) one-twentieth of the *diyat* if the child is born dead;
- (b) full *diyat* if the child is born alive but dies as a result of any act of the offender; and
- (c) imprisonment of either description for a term which may extend to seven years as *ta'zir*:

Provided that, if there are more than one child in the womb of the woman, the offender shall be liable to separate *diyat* or *ta'zir*, as the case may be, for every such child:

Provided further that if, as a result of *isqat-i-janin*, any hurt is caused to the woman or she dies, the offender shall also be liable to the punishment provided for such hurt or death, as the case may be.

338D. *Confirmation of sentence of death by way of qisas or ta'zir, etc.*— A sentence of death awarded by way of *qisas* or *ta'zir*, or a sentence of *qisas* awarded for causing hurt, shall not be executed, unless it is confirmed by the High Court.

338E. *Waiver or compounding of offences.*— (1) Subject to the provisions of this Chapter and section 345 of the Code of Criminal Procedure, 1898 (V of 1898), all offences under this Chapter may be waived or compounded and the provisions of sections 309 ¹[310 and 311] shall, mutatis mutandis, apply to the waiver or compounding of such offences:

Provided that, where an offence has been waived or compounded, the court may, in its discretion having regard to the facts and circumstances of the case, acquit or award *ta'zir* to the offender according to the nature of the offence ²[:]

¹[Provided further that where an offence under this Chapter has been committed and the principle of *fasad-fil-arz* is attracted, the court having regard to the facts and circumstances of the case shall punish an offender with imprisonment or fine as provided for that offence.]

¹Subs. by Act XLIII of 2016, s. 7.

²Subs. by Act I of 05, s.12.

(2) All questions relating to waiver or compounding of an offence or awarding of punishment under section 310, whether before or after the passing of any sentence, shall be determined by trial court :

Provided that where the sentence of *qisas* or any other sentence is waived or compounded during the pendency of an appeal, such questions may be determined by the appellate court.

338F. Interpretation.— In the interpretation and application of the provisions of this Chapter, and in respect of matter ancillary or akin thereto, the court shall be guided by the Injunctions of Islam as laid down in the Holy Quran and Sunnah.

338G. Rules.— ¹[(1)] The Government may, in consultation with the Council of Islamic Ideology, by notification in the official Gazette, make such rules as it may consider necessary for carrying out the purposes of this Chapter.

¹[(2) Notwithstanding anything contained in sub-section (1), the Federal Government may, by Notification in the official Gazette, make rules regarding the following matters, namely:—

- (a) providing mechanism for creation of a fund, which shall be non-lapsable and exempted from taxes, for the purpose of making of payment of *diyat*, *arsh* and *daman* of the convicts, who, on account of poverty and weak financial position are confined in jails for want of making the said payment;
- (b) facility of extending soft loans out of the said fund to the convicts enabling them to satisfy the claim of legal heirs of the deceased or victims in respect of *diyat*, *arsh* and *daman*;
- (c) in appropriate cases release of such prisoners on parole by the court who after having served out the substantive sentence of imprisonment, if any, are confined in jails on account of non-payment of *diyat*, *arsh* and *daman*;
- (d) providing jobs to the said convicts, other than the Government department in the work places attached with the jails or through the social organizations or philanthropists, enabling the convicts to disburse the amount paid out of the fund or extended through loans;
- (e) mechanism for protecting rights of the victims for the purpose of *diyat*, *arsh* and *daman*; and
- (f) any other matter for which the rules may be necessary to carry out the aforesaid purposes.]

338H. Saving.— (1) Nothing in this Chapter, except sections 309, 310 and 338E, shall apply to cases pending before any court immediately before the commencement of the Criminal Law (Second Amendment) Ordinance, 1990 (VII of 1990), or to the offences committed before such commencement].

¹Re-numbered & added by Act XV of 2010, s.5 (w.e.f. 3-10-2007)

¹[CHAPTER XVI A]

OF WRONGFUL RESTRAINT AND WRONGFUL CONFINEMENT

339. Wrongful restraint. Whoever voluntarily obstructs any person so as to prevent that person from proceeding in any direction in which that person has a right to proceed, is said wrongfully to restrain that person.

Exception.— The obstruction of a private way over land or water which a person in good faith believes himself to have a lawful right to obstruct, is not an offence within the meaning of this section.

Illustration

A obstructs a path along which Z has a right to pass, A not believing in good faith that he has a right to stop the path. Z is thereby prevented from passing. A wrongfully restrains Z.

340. Wrongful confinement. Whoever wrongfully restrains any person in such a manner as to prevent that person from proceeding beyond certain circumscribing limits, is said “wrongfully to confine” that person.

Illustrations

- (a) A causes Z to go within a walled space, and locks Z in. Z is then prevented from proceeding in any direction beyond the circumscribing line of wall. A wrongfully confines Z.
- (b) A places men with firearms at the outlets of a building, and tells Z that they will fire at Z if Z attempts to leave the building. A wrongfully confines Z.

341. Punishment for wrongful restrains. Whoever wrongfully restrains any person, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to ²[one thousand five hundred rupees], or with both.

342. Punishment for wrongful confinement. Whoever wrongfully confines any person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to ²[three thousand rupees], or with both.

343. Wrongful confinement for three or more days. Whoever wrongfully confines any person for three days or more, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

344. Wrongful confinement for ten or more days. Whoever wrongfully confines any person for ten days, or more, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

345. Wrongful confinement of person for whose liberation writ has been issued. Whoever keeps any person in wrongful confinement, knowing that a writ for the liberation of that person has been duly issued, shall be punished with imprisonment of either description for a term which may extend to two years in addition to any term of imprisonment to which he may be liable under any other section of this Chapter.

¹Ins. by Act No II of 1997, s.7.

²Subs. by Ord. 86 of 02, s.2 & Sch.I.

346. Wrongful confinement in secret. Whoever wrongfully confines any person in such manner as to indicate an intention that the confinement of such person may not be known to any person interested in the person so confined, or to any public servant, or that the place of such confinement may not be known to or discovered by any such person or public servant as hereinbefore mentioned, shall be punished with imprisonment of either description for a term which may extend to two years in addition to any other punishment to which he may be liable for such wrongful confinement.

347. Wrongful confinement to extort property or constrain to illegal act. Whoever wrongfully confines any person for the purpose of extorting from the person confined, or from any person interested in the person confined, any property or valuable security or of constraining the person confined or any person interested in such person to do anything illegal or to give any information which may facilitate the commission of an offence, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

348. Wrongful confinement to extort confession, or compel restoration of property. Whoever wrongfully confines any person for the purpose of extorting from the person confined or any person interested in the person confined any confession or any information which may lead to the detection of an offence or misconduct, or for the purpose of constraining the person confined or any person interested in the person confined to restore or to cause the restoration of any property or valuable security or to satisfy any claim or demand, or to give information which may lead to the restoration of any property or valuable security, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

¹Of Criminal Force and Assault

349. Force. A person is said to use force to another if he causes motion, change of motion, or cessation of motion to that other, or if he causes to any substance such motion, or change of motion, or cessation of motion as brings that substance into contact with any part of that other's body, or with anything which that other is wearing or carrying, or with anything so situated that such contact affects that other's sense of feeling : Provided that the person causing the motion, or change of motion, or cessation of motion, causes that motion, change of motion, or cessation of motion in one of the three ways hereinafter described :

First.—By his own bodily power.

Secondly.— By disposing any substance in such a manner that the motion or change or cessation of motion takes place without any further act on his part, or on the part of any other person.

Thirdly.— By inducing any animal to move, to change its motion, or to cease to move.

350. Criminal force. Whoever intentionally uses force to any person, without that person's consent, in order to the committing of any offence, or intending by the use of such force to cause, or knowing it to be likely that by the use of such force he will cause injury, fear or annoyance to the person to whom the force is used, is said to use criminal force to that other.

Illustrations

- (a) Z is sitting in a moored boat on a river. A unfastens the moorings, and thus intentionally causes the boat to drift down the stream. Here A intentionally

¹As to punishment for an offence under s. 354 enquired into by a Council of Elders in a Punjab Frontier District, in the N.W.F.P. or in Baluchistan see the Frontier Crime Regulation, 1901 (3 of 1901), s.12.

causes motion to Z, and he does this by disposing substances in such a manner that the motion is produced without any other action on any person's part. A has therefore intentionally used force to Z; and if he has done so without Z's consent, in order to the committing of any offence, or intending or knowing it to be likely that this use of force will cause injury, fear or annoyance to Z, A has used criminal force to Z.

- (b) Z is riding in a chariot. A lashes Z's horses, and thereby causes them to quicken their pace. Here A has caused change of motion to Z by inducing the animals to change their motion. A has therefore used force to Z; and if A has done this without Z's consent, intending or knowing it to be likely that he may thereby injure, frighten or annoy Z, A has used criminal force to Z.
- (c) Z is riding in a palanquin. A, intending to rob Z, seizes the pole and stops the palanquin. Here A has caused cessation of motion to Z, and he has done this by his own bodily power. A has therefore used force to Z; and as A has acted thus intentionally, without Z's consent, in order to the commission of an offence. A has used criminal force to Z.
- (d) A intentionally pushes against Z in the street. Here A has by his own bodily power moved his own person so as to bring it into contact with Z. He has therefore intentionally used force to Z; and if he has done so without Z's consent, intending or knowing it to be likely that he may thereby injure, frighten or annoy Z, he has used criminal force to Z.
- (e) A throws a stone, intending or knowing it to be likely that the stone will be thus brought into contact with Z, or with Z's clothes, or with something carried by Z, or that it will strike water, and dash up the water against Z's clothes or something carried by Z. Here, if the throwing of the stone produce the effect of causing any substance to come into contact with Z, or Z's clothes, A has used force to Z; and if he did so without Z's consent, intending thereby to injure, frighten or annoy Z, he has used criminal force to Z.
- (f) A intentionally pulls up a woman's veil. Here A intentionally uses force to her, and if he does so without her consent intending or knowing it to be likely that he may thereby injure, frighten or annoy her, he has used criminal force to her.
- (g) Z is bathing, A pours into the bath water which he knows to be boiling. Here A intentionally by his own bodily power causes such motion in the boiling water as brings that water into contact with Z, or with other water so situated that such contact must affect Z's sense of feeling: A has therefore intentionally used force to Z; and if he has done this without Z's consent intending or knowing it to be likely that he may thereby cause injury, fear or annoyance to Z, A has used criminal force.
- (h) A incites a dog to spring upon Z, without Z's consent. Here, if A intends to cause injury, fear or annoyance to Z, he uses criminal force to Z.

351. Assault. Whoever makes any gesture, or any preparation intending or knowing it to be likely that such gesture or preparation will cause any person present to apprehend that he who makes that gesture or preparation is about to use criminal force to that person, is said to commit an assault.

Explanation.— Mere words do not amount to an assault. But the words which a person uses may give to his gestures or preparation such a meaning as may make those gestures or preparations amount to an assault.

Illustrations

- (a) A shakes his fist at Z, intending or knowing it to be likely that he may thereby cause Z to believe that A is about to strike Z. A has committed an assault.
- (b) A begins to unloose the muzzle of a ferocious dog, intending, or knowing it to be likely that he may thereby cause Z to believe that he is about to cause the dog to attack Z. A has committed an assault upon Z.
- (c) A takes up a stick, saying to Z, “I will give you a beating”. Here, though the words used by A could in no case amount to an assault, and though the mere gesture, unaccompanied by any other circumstances, might not amount to an assault, the gesture explained by the words may amount to an assault.

352. Punishment for assault or criminal force otherwise than on grave provocation. Whoever assaults or uses criminal force to any person otherwise than on grave and sudden provocation given by that person, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to ¹[one thousand five hundred rupees], or with both.

Explanation.— Grave and sudden provocation will not mitigate the punishment for an offence under this section, if the provocation is sought or voluntarily provoked by the offender as an excuse for the offence, or

if the provocation is given by anything done in obedience to the law, or by a public servant, in the lawful exercise of the powers of such public servant, or

if the provocation is given by anything done in the lawful exercise of the right of private defence.

Whether the provocation was grave and sudden enough to mitigate the offence, is a question of fact.

353. Assault or criminal force to deter public servant from discharge of his duty. Whoever assaults or uses criminal force to any person being a public servant in the execution of his duty as such public servant, or with intent to prevent or deter that person from discharging his duty as such public servant, or in consequence of anything done or attempted to be done by such person in the lawful discharge of his duty as such public servant, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

354. Assault or criminal force to woman with intent to outrage her modesty. Whoever assaults or uses criminal force to any woman, intending to outrage or knowing it to be likely that he will thereby outrage her modesty, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

²[354A. **Assault or use of criminal force to woman and stripping her of her clothes.**— Whoever assaults or uses criminal force to any woman and strips her of her clothes and, in that condition, exposes

¹Subs. by Ord. No. 86 of 2002, s.2 and Sch-I.

²Ins. by Ord. XXIV of 1984, s.2.

her to the public view, shall be punished ¹[***] with imprisonment for life, and shall also be liable to fine.]

355. Assault or criminal force with intent to dishonour person, otherwise than on grave provocation. Whoever assaults or uses criminal force to any person, intending thereby to dishonour that person, otherwise than on grave and sudden provocation given by that person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

356. Assault or criminal force in attempt to commit theft of property carried by a person. Whoever assaults or uses criminal force to any person in attempting to commit theft on any property which that person is then wearing or carrying shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

357. Assault or criminal force in attempt wrongfully to confine a person. Whoever assaults or uses criminal force to any person, in attempting wrongfully to confine that person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to ²[three thousand rupees], or with both.

358. Assault or criminal force on grave provocation. Whoever assaults or uses criminal force to any person on grave and sudden provocation given by that person, shall be punished with simple imprisonment for a term which may extend to one month or with fine which may extend to ²[six hundred rupees], or with both.

Explanation.— The last section is subject to the same Explanation as section 352.

Of Kidnapping, Abduction, Slavery and Forced Labour

359. Kidnapping. Kidnapping is of two kinds: kidnapping from ³[Pakistan], and kidnapping from lawful guardianship.

360. Kidnapping from Pakistan. Whoever conveys any person beyond the limits of ³[Pakistan] without the consent of that person, or of some person legally authorised to consent on behalf of that person, is said to kidnap that person from ³[Pakistan].

361. Kidnapping from lawful guardianship. Whoever takes or entices any minor under fourteen years of age if a male, or under sixteen years of age if a female, or any person of unsound mind, out of the keeping of the lawful guardian of such minor or person of unsound mind, without the consent of such guardian, is said to kidnap such minor or person from lawful guardianship.

Explanation.— The words “lawful guardian” in this section include any person lawfully entrusted with the care or custody of such minor or other person.

Exception.— This section does not extend to the act of any person who in good faith believes himself to be the father of an illegitimate child, or who in good faith believes himself to be entitled to the lawful custody of such child, unless such act is committed for an immoral or unlawful purpose.

362. Abduction. Whoever by force compels, or by any deceitful means induces, any person to go from any place, is said to abduct that person.

¹Omitted by the Criminal Laws (Amendment) Act, 2025 (Act No. XXVII of 2025), s.2

²Subs. by Ord. No. 86 of 2002, s.2 and Sch-I.

³Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (w.e.f. 14th October, 1955).

363. Punishments for kidnapping. Whoever kidnaps any person from ¹[Pakistan] or from lawful guardianship, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

364. Kidnapping or abducting in order to murder. Whoever kidnaps or abducts any person in order that such person may be murdered or may be so disposed of as to be put in danger of being murdered, shall be punished with ²[imprisonment for life] or rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

Illustrations

- (a) A kidnaps Z from ¹[Pakistan], intending or knowing it to be likely that Z may be sacrificed to an idol. A has committed the offence defined in this section.
- (b) A forcibly carries or entices B away from his home in order that B may be murdered. A has committed the offence defined in this section.

³[364A. Kidnapping or abducting a person under the ⁴[age of fourteen]. Whoever kidnaps or abducts any person under the ⁴[age of fourteen] in order that such person may be murdered or subjected to grievous hurt, or slavery, or to the lust of any person or may be so disposed of as to be put in danger of being murdered or subjected to grievous hurt, or slavery, or to the lust of any person shall be punished with death or with ²[imprisonment for life] or with rigorous imprisonment for a term which may extend to fourteen years and shall not be less than seven years.]

365. Kidnapping or abducting with intent secretly and wrongfully to confine person. Whoever kidnaps or abducts any person with intent to cause that person to be secretly and wrongfully confined, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

⁴[365A. Kidnapping or abducting for extorting property, valuable security, etc.— Whoever kidnaps or abducts any person for the purpose of extorting from the person kidnapped or abducted, or from any person interested in the person kidnapped or abducted, any property, whether movable or immovable, or valuable security, or to compel any person to comply with any other demand, whether in cash or otherwise, for obtaining release of the person kidnapped or abducted, shall be punished with ⁵[death or] imprisonment for life and shall also be liable to forfeiture of property.]

⁶[365B. Kidnapping, abducting or inducing woman to compel for marriage etc.— Whoever kidnaps or abducts any woman with intent that she may be compelled, or knowing it to be likely that she will be compelled, to marry any person against her will, or in order that she may be forced, or seduced to illicit intercourse, or knowing it to be likely that she will be forced or seduced to illicit intercourse, shall be punished with imprisonment for life, and shall also be liable to fine; and whoever by means of criminal intimidation as defined in this Code or of abuse of authority or any other method of compulsion, induces any woman to go from any place with intent that she may be, or

¹Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (w.e.f. 14th October, 1955), for “the Provinces and the Capital of the Federation” which had been subs. by A. O., 1949, Arts. 3(2) ad 4, for “British India”.

²Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch., for “transportation for life”.

³S. 364A ins. by the Criminal Laws Amdt. Act, 1958 (34 of 1958), s. 2.

⁴Subs. & Ins. by Act III of 1990, s.2 & s.3.

⁵Ins. by Act II of 1991, s.2.

⁶Ins. by Act. VI of 06, ss. 2 & 3.

knowing that it is likely that she will be, forced or seduced to illicit intercourse with another person shall also be punishable as aforesaid.]

¹**366.** *[Kidnapping, abducting or inducing woman to compel her marriage, etc.] Rep. by the Offence of Zina (Enforcement of Hudood) Ordinance, 1979 (VII of 1979), s. 19 (w.e.f. the 10th day of February, 1979).*

²**[366A. Procurement of minor girl.** Whoever, by any means whatsoever, induces any minor girl under the age of eighteen years to go from any place or to do any act with intent that such girl may be, or knowing that it is likely that she will be, forced or seduced to illicit intercourse with another person shall be punishable with imprisonment which may extend to ten years and shall also be liable to fine.]

³**[366B. Importation of girl from foreign country.** Whoever imports into Pakistan from any country outside Pakistan any girl under the age of twenty-one years with intent that she may be, or knowing it to be likely that she will be, forced or seduced to illicit intercourse with another person, shall be punishable with imprisonment which may extend to ten years and shall also be liable to fine.]

367. Kidnapping or abducting in order to subject person to grievous hurt, slavery, etc. Whoever kidnaps or abducts any person in order that such person may be subjected, or may be so disposed of as to be put in danger of being subjected to grievous hurt, or slavery, ⁴* * * or knowing it to be likely that such person will be so subjected or disposed of, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

⁵**[367A. Kidnapping or abducting in order to subject person to unnatural lust.** Whoever kidnaps or abducts any person in order that such person may be subjected, or may be so disposed of as to be put in danger of being subjected, to the unnatural lust of any person, or knowing it to be likely that such person will be so subjected or disposed of, shall be punished with death or rigorous imprisonment for a term which may extend to twenty-five years, and shall also be liable to fine.]

368. Wrongfully concealing or keeping in confinement, kidnapped or abducted person. Whoever, knowing that any person has been kidnapped or has been abducted, wrongfully conceals or confines such person, shall be punished in the same manner as if he had kidnapped or abducted such person with the same intention or knowledge, or for the same purpose as that with or for which he conceals or detains such person in confinement.

369. Kidnapping or abducting child under ten years with intent to steal from its persons. Whoever kidnaps or abducts any child under the age of ten years with the intention of taking dishonestly any moveable property from the person of such child, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

369A. ⁶* * * * *

¹This section was amended by the Indian Penal Code (Arndt.) Act, 1923 (20 of 1923), s. 2.

²Ss. 366A and 366B were ins. *ibid.*, s. 3.

³Section 366B as amended by A. O., 1949, Ord. 21 of 1960. Ord. 1 of 1961 have been subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and II Sch., to read as above.

⁴The words "or to the unnatural lust of any person," omitted by the Offence of Zina (Enforcement of Hudood) Ordinance, 1979 (7 of 1979), s.19 (w.e.f. 10th February, 1979).

⁵Ins. by Act VI of 06, ss.2-3.

⁶Omitted by Act XXXIV of 2018, s.16(3).

370. Buying or disposing of any person as a slave. Whoever imports, exports, removes, buys, sells or disposes of any person as a slave, or accepts, receives or detains against his will any person as a slave, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

371. Habitual dealing in slaves. Whoever habitually imports, exports, removes, buys, sells, traffics or deals in slaves, shall be punished with ¹[imprisonment for life], or with imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine.

²**[371A.— Selling person for purposes of prostitution, etc.]** Whoever sells, lets to hire, or otherwise disposes of any person with intent that such person shall at any time be employed or used for the purpose of prostitution or illicit intercourse with any person or for any unlawful and immoral purpose, or knowing it to be likely that such person will at any time be employed or used for any such purpose, shall be punished with imprisonment which may extend to twenty-five years, and shall also be liable to fine.

Explanations.— (a) When a female is sold, let for hire, or otherwise disposed of to a prostitute or to any person who keeps or manages a brothel, the person so disposing of such female shall, until the contrary is proved, be presumed to have disposed of her with the intent that she shall be used for the purpose of prostitution.

(b) For the purposes of this section and section 371B, “illicit intercourse” means sexual intercourse between persons not united by marriage.

371B. Buying person for purposes of prostitution, etc.— Whoever buys, hires or otherwise obtains possession of any person with intent that such person shall at any time be employed or used for the purpose of prostitution or illicit intercourse with any person or for any unlawful and immoral purpose, or knowing it to be likely that such person will at any time be employed or used for any such purpose, shall be punished with imprisonment which may extend to twenty-five years, and shall also be liable to fine.

Explanation.— Any prostitute or any person keeping or managing a brothel, who buys, hires or otherwise obtains possession of a female shall, until the contrary is proved, be presumed to have obtained possession of such female with the intent that she shall be used for the purpose of prostitution.]

³**372. [Selling minor for purposes of prostitution, etc.]** Rep. by the Offence of Zina (Enforcement of Hudood) Ordinance, 1979 (VII of 1979), s. 19 (w.e.f. the 10th day of February, 1979).

³**373. [Buying minor for purposes of prostitution, etc.]** Rep. by the Offence of Zina (Enforcement of Hudood) Ordinance, 1979 (VII of 1979), s. 19 (w.e.f. the 10th day of February, 1979).

⁴**[374. Unlawful compulsory labour.—** (1)] Whoever unlawfully compels any person to labour against the will of that person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

¹Subs. by the Law Reforms Ordinance, 1972, (12 of 1972), s.2, and Sch., for “transportation of life”

²Ins. by Act. VI of 06, s. 4.

³This section was amended by the Indian Penal Code (Amdt.) Act, 1924 (5 of 1924) s. 2 and the Indian Criminal Law (Amdt.) Act, 1924 (18 of 1924), s.2.

⁴S. 374 was re-numbered as sub-section (1) of that section by the Pakistan Penal Code (Amdt.) Act, 1958 (36 of 1958), s. 2.

¹[(2) Whoever compels a prisoner of war or a protected person to serve in the armed forces of Pakistan shall be punished with imprisonment of either description for a term which may extend to one year.

Explanation.— In this section the expressions “prisoner of war” and “protected person” shall have the same meaning as have been assigned to them respectively by Article 4 of the Geneva Convention Relative to the Treatment of Prisoners of War of August 12, 1949, and Article 4 of the Geneva Convention Relative to the Protection of Civilian Persons in Time of War of August 12, 1949, ratified by Pakistan on the second June, 1951.]

Of Rape

³[**375. Rape**— A person A is said to commit “rape” if A—

- (a) penetrates his penis, to any extent, into the vagina, mouth, urethra or anus of another person B or makes B to do so with A or any other person; or
- (b) inserts, to any extent, any object or a part of the body, not being the penis, into the vagina, the urethra or anus of B or makes B to do so with A or any other person; or
- (c) manipulates any part of the body of B so as to cause penetration into the vagina, urethra, anus or any part of body of B or makes B to do so with A or any other person; or
- (d) applies his mouth to the vagina, anus, urethra or penis of B or makes B to do so with A or any other person, under the circumstances falling under any of the following seven descriptions,—

firstly, against **B’s** will;

secondly, without **B’s** consent;

thirdly, with **B’s** consent, which has been obtained by putting **B** or any person in whom **B** is interested, in fear of death or of hurt;

fourthly, with **B’s** consent, when **A** knows that **A** is not **B’s** husband and that **B’s** consent is given because **B** believes that **A** is another man to whom **B** is or believes herself to be lawfully married;

fifthly, with **B’s** consent when at the time of giving such consent, by reason of un-soundness of mind or intoxication or the administration by **A** personally or through another of any stupefying or un-wholesome substance, **B** is unable to understand the nature and consequences of that to which **B** gives consent;

sixthly, with or without **B’s** consent, when **B** is under sixteen years of age; or

seventhly, when **B** is unable to communicate consent.

¹Sub-section (2) added by the Pakistan Penal Code (Amdt.) Act, 1958 (36 of 1958), s. 2.

²Subs. by Act LVI of 2021, s.2.

³Ins. by Act VI of 2006, s.5.

Explanation 1.—For the purposes of this section, “vagina” shall also include labia majora.

Explanation 2.— Consent means an un-equivocal voluntary agreement when B by words, gestures or any form of verbal or non-verbal communication, communicates willingness to participate in the specific sexual act:

Provided that if **B** who does not physically resists to the act of penetration, it shall not by the reason only of that fact, be regarded as consenting to the sexual activity.

Explanation 3.— In this Chapter,—

“person” means male, female or transgender, and

“rape” includes “gang rape”.

Explanation 4.— A bonafide medical procedure or intervention shall not constitute rape.

¹[375A. Gang rape.— Where a person is raped by one or more persons constituting a group or acting in furtherance of a common intention. each of those persons shall be guilty of the offence of gang rape and shall be punished with death or for imprisonment for the remainder period of natural life or imprisonment for life and fine.]

376. Punishment for rape.— (1) Whoever commits rape shall be punished with death or imprisonment of either description for a term which shall not be less than ten years or more than twenty-five years ¹[or for imprisonment for the remainder period of his natural life] and shall also be liable to fine.

³[(1A) Whoever commits an offence punishable under sub-section (1) or sub-section (2) or section 377 or section 377B and in the course of such commission causes any hurt punishable as an offence under section 333, section 335, clauses (iv), (v) and (vi) of sub-section (3) of section 337, section 337C, clauses (v) and (vi) of section 337F shall be punished with death or imprisonment for life and fine.]

(2) ²[* * * * *]

³[(3) Whoever commits rape of a minor or a person with mental or physical disability shall be punished with death or imprisonment for life and fine.

(4) Whoever being a public servant including a police officer, medical officer or jailor, taking advantage of his official position, commits rape shall be punished with death or imprisonment for life and fine.]

³[376A. Disclosure of identity of victim of rape, etc.— (1) Whoever prints or publishes name or any matter which may make known identity of victim, against whom an offence under sections 354A, 376, 376A, 377 and 377B is alleged or found to have been committed, shall be punished with imprisonment of either description for a term which may extend to three years and shall also be liable to fine.

¹Ins. by Act LVI of 2021, ss.3 & 4.

²Omitted. by Act LVI of 2021, s.4.

³Ins. by Act XLIV of 2016, ss.5 and 6.

- (2) Nothing is sub-section (1) extends to any printing or publication if it is—
- (a) by or under order in writing of officer-in-charge of the police station or police officer making investigation into such offence acting in good faith for the purposes of such investigation; or
 - (b) by or under order of Court; or
 - (c) by or with authorization in writing of the victim; or
 - (d) by or with the authorization in writing of natural or legal guardian of the victim where the victim is dead or a minor or of unsound mind.

Explanation.— Printing or publication of judgment of any High Court, the Federal Shariat Court or the Supreme Court in law journals does not amount to an offence within the meaning of this section.]

Of Unnatural Offences

377. Unnatural offences.— Whoever voluntarily has carnal intercourse against the order of nature with any man, woman or animal, shall be punished with ¹[imprisonment for life,] or with imprisonment of either description for a term which ²[shall not be less than two years nor more than] ten years, and shall also be liable to fine.

Explanation.— Penetration is sufficient to constitute the carnal intercourse necessary to the offence described in this section.

³**[377A. Sexual abuse.**— Whoever employs, uses, forces, persuades, induces, entices, or coerces any person to engage in, or assist any other person to engage in fondling, stroking, caressing, exhibitionism, voyeurism or any obscene or sexually explicit conduct or simulation of such conduct either independently or in conjunction with other acts, with or without consent where age of person is less than eighteen years, is said to commit the offence of sexual abuse.

377B. Punishment.— Whoever commits the offence of sexual abuse shall be punished with imprisonment of either description for a term which ⁴[shall not be less than fourteen years and may extend up to twenty years and with fine which shall not be less than one million rupees.]

CHAPTER XVII

OF OFFENCES AGAINST PROPERTY

Of Theft

378. Theft. Whoever, intending to take dishonestly any moveable property out of the possession of any person without that person's consent, moves that property in order to such taking, is said to commit theft.

¹Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch., for “transportation for life”.

²Subs. by the Criminal Laws (Amdt.) Ord. 1980 (3 of 1980), s.6, for “may extend to”.

³Ins. by Act X of 2016, s. 7.

⁴Subs. by Act XXVII of 2018, s.3.

Explanation 1.— A thing so long as it is attached to the earth, not being moveable property, is not the subject of theft; but it becomes capable of being the subject of theft as soon as it is severed from the earth.

Explanation 2.— A moving effected by the same act which effects the severance may be a theft.

Explanation 3.— A person is said to cause a thing to move by removing an obstacle which prevented it from moving or by separating it from any other thing, as well as by actually moving it.

Explanation 4.— A person, who by any means causes an animal to move, is said to move that animal, and to move everything which, in consequence of the motion so caused, is moved by that animal.

Explanation 5.— The consent mentioned in the definition may be expressed or implied, and may be given either by the person in possession, or by any person having for that purpose authority either express or implied.

Illustrations

- (a) A cuts down a tree on Z's ground, with the intention of dishonestly taking the tree out of Z's possession without Z's consent. Here, as soon as A has severed the tree in order to such taking, he has committed theft.
- (b) A puts a bait for dogs in his pocket, and thus induces Z's dog to follow it. Here, if A's intention be dishonestly to take the dog out of Z's possession without Z's consent, A has committed theft as soon as Z's dog has begun to follow A.
- (c) A meets a bullock carrying a box of treasure. He drives the bullock in a certain direction, in order that he may dishonestly take the treasure. As soon as the bullock begins to move, A has committed theft of the treasure.
- (d) A being Z's servant, and entrusted by Z with the care of Z's plate, dishonestly runs away with the plate, without Z's consent. A has committed theft.
- (e) Z, going on a journey, entrusts his plate to A, the keeper of a warehouse, till Z shall return. A carries the plate to a goldsmith and sells it. Here the plate was not in Z's possession. It could not therefore be taken out of Z's possession and A has not committed theft, though he may have committed criminal breach of trust.
- (f) A finds a ring belonging to Z on a table in the house which Z occupies. Here the ring is in Z's possession, and if A dishonestly removes it, A commits theft.
- (g) A finds a ring lying on the high-road, not in the possession of any person. A, by taking it, commits no theft, though he may commit criminal misappropriation of property.
- (h) A sees a ring belonging to Z lying on a table in Z's house. Not venturing to misappropriate the ring immediately for fear of search and detection, A hides the ring in a place where it is highly improbable that it will ever be found by Z, with the intention of taking the ring from the hiding place and selling it when the loss is forgotten. Here A, at the time of first moving the ring, commits theft.

- (i) A delivers his watch to Z, a jeweller, to be regulated. Z carries it to his shop. A, not owing to the jeweller any debt for which the jeweller might lawfully detain the watch as a security, enters the shop openly, takes his watch by force out of Z's hand, and carries it away. Here A, though he may have committed criminal trespass and assault, has not committed theft, in as much as what he did was not done dishonestly.
- (j) If A owes money to Z for repairing the watch, and if Z retains the watch lawfully as a security for the debt, and A takes the watch out of Z's possession, with the intention of depriving Z of the property as a security for his debt, he commits theft, inasmuch as he takes it dishonestly.
- (k) Again, if A, having pawned his watch to Z, takes it out of Z's possession without Z's consent, not having paid what he borrowed on the watch, he commits theft, though the watch is his own property inasmuch as he takes it dishonestly.
- (l) A takes an article belonging to Z out of Z's possession without Z's consent, with the intention of keeping it until he obtains money from Z as a reward for its restoration. Here A takes dishonestly; A has therefore committed theft.
- (m) A, being on friendly terms with Z, goes in to Z's library in Z's absence, and takes away a book without Z's express consent for the purpose merely of reading it, and with the intention of returning it. Here, it is probable that A may have conceived that he had Z's implied consent to use Z's book. If this was A's impression, A has not committed theft.
- (n) A asks charity from Z's wife. She gives A money, food and clothes, which A knows to belong to Z her husband. Here it is probable that A may conceive that Z's wife is authorized to give away alms. If this was A's impression, A has not committed theft.
- (o) A is the paramour of Z's wife. She gives A valuable property, which A knows to belong to her husband Z, and to be such property as she has not authority from Z to give. If A takes the property dishonestly, he commits theft.
- (p) A, in good faith, believing property belonging to Z to be A's own property, takes that property out of Z's possession. Here, as A does not take dishonestly, he does not commit theft.

379. Punishment for theft. Whoever commits theft shall be punished with imprisonment of either description for a term which may extend to three years, or with fine or with both.

380. Theft in dwelling house. etc. Whoever commits theft in any building, tent or vessel, which building, tent or vessel is used as a human dwelling, or used for the custody of property shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

381. Theft by clerk or servant of property in possession of master. Whoever being a clerk or servant, or being employed in the capacity of a clerk or servant, commits theft in respect of any property in the possession of his master or employer shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

¹[**381A. Theft of a car or other motor vehicles.**— Whoever commits theft of a car or any other motor vehicle, including motor-cycle, scooter and Tractor shall be punished with imprisonment of either description for a term which may extend to seven years and with fine not exceeding the value of the stolen car or motor vehicle.]

²[*Explanation.*— Theft of an electric motor of a tube well or transformer shall be within the meaning of this section.]

382. Theft after preparation made for causing death, hurt or restraint in order to the committing of the theft. Whoever commits theft, having made preparation for causing death, or hurt, or restraint, or fear of death, or of hurt, or of restraint, to any person, in order to the committing of such theft, or in order to the effecting of his escape after the committing of such theft, or in order to the retaining of property taken by such theft, shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

Illustrations

- (a) A commits theft on property in Z's possession ; and, while committing this theft, he has a loaded pistol under his garment having provided this pistol for the purpose of hurting Z in case Z should resist. A has committed the offence defined in this section.
- (b) A picks Z's pocket, having posted several of his companions near him in order that they may restrain Z, if Z should perceive what is passing and should resist, or should attempt to apprehend A. A has committed the offence defined in this section.

383. Extortion. Whoever intentionally puts any person in fear of any injury to that person, or to any other, and thereby dishonestly induces the person so put in fear to deliver to any person any property or valuable security or anything signed or sealed which may be converted into a valuable security, commits "extortion".

Illustrations

- (a) A threatens to publish a defamatory libel concerning Z unless Z gives him money. He thus induces Z to give him money. A has committed extortion.
- (b) A threatens Z that he will keep Z's child in wrongful confinement unless Z will sign and deliver to A a promissory note binding Z to pay certain money to A. Z signs and delivers the note. A has committed extortion.
- (c) A threatens to send club-men to plough up Z's field unless Z will sign and deliver to B a bond binding Z under a penalty to deliver certain produce to B, and thereby induces Z to sign and deliver the bond. A has committed extortion.
- (d) A, by putting Z in fear of grievous hurt, dishonestly induces Z to sign or affix his seal to a blank paper and deliver it to A. Z signs and delivers the paper to A. Here, as the paper so signed may be converted into a valuable security, A has committed extortion.

¹Ins. by Act I of 1996, s.2.

²Added by Act XVI of 1996, s.2.

384. Punishment for extortion. Whoever, commits extortion shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

385. Putting person in fear of injury in order to commit extortion. Whoever, in order to the committing of extortion, puts any person in fear or attempts to put any person in fear, of any injury, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

386. Extortion by putting a person in fear of death or grievous hurt. Whoever, commits extortion by putting any person in fear of death or of grievous hurt to that person or to any other, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

387. Putting person in fear of death or of grievous hurt, in order to commit extortion. Whoever, in order to the committing of extortion puts or attempts to put any person in fear of death or of grievous hurt to that person or to any other, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

388. Extortion by threat of accusation of an offence punishable with death or ¹[imprisonment for life] etc. Whoever commits extortion by putting any person in fear of an accusation against that person or any other, of having committed or attempted to commit any offence punishable with death, or with ²[imprisonment for life], or with imprisonment for a term which may extend to ten years, or of having attempted to induce any other person to commit such offence, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine; and, if the offence be one punishable under section 377 of this Code, may be punished with ²[imprisonment for life].

389. Putting person in fear of accusation of offence, in order to commit extortion. Whoever, in order to the committing of extortion, puts or attempts to put any person in fear of an accusation, against that person or any other, of having committed, or attempted to commit an offence punishable with death or with ²[imprisonment for life], or with imprisonment for a term which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine; and, if the offence be punishable under section 377 of this Code, may be punished with ²[imprisonment for life.]

Of Robbery and Dacoity

390. Robbery. In all robbery there is either theft or extortion.

When theft is robbery. Theft is “robbery” if, in order to the committing of the theft, or in committing the theft, or in carrying away or attempting to carry away property obtained by the theft, the offender, for that end, voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint, or fear of instant death or of instant hurt, or of instant wrongful restraint.

When extortion is robbery. Extortion is “robbery” if the offender, at the time of committing the extortion, is in the presence of the person put in fear, and commits the extortion by putting that

¹Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch., for “transportation”.

²Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch., for “transportation for life”.

person in fear of instant death, of instant hurt, or of instant wrongful restraint to that person, or to some other person, and, by so putting in fear, induces the person so put in fear then and there to deliver up the thing extorted.

Explanation.— The offender is said to be present if he is sufficiently near to put the other person in fear of instant death, of instant hurt, or of instant wrongful restraint.

Illustrations

- (a) A holds Z down, and fraudulently takes Z's money and jewels from Z's clothes, without Z's consent. Here A has committed theft, and, in order to the committing of that theft, has voluntarily caused wrongful restraint to Z. A has therefore committed robbery.
- (b) A meets Z on the high-road, shows a pistol, and demands Z's purse. Z, in consequence, surrenders his purse. Here A has extorted the purse from Z by putting him in fear of instant hurt, and being at the time of committing the extortion in his presence. A has therefore committed robbery.
- (c) A meets Z and Z's child on the high-road. A takes the child, and threatens to fling it down a precipice, unless Z deliver his purse. Z, in consequence, delivers his purse. Here A has extorted the purse from Z, by causing Z to be in fear of instant hurt to the child who is there present. A has therefore committed robbery on Z.
- (d) A obtains property from Z by saying—"Your child is in the hands of my gang, and will be put to death unless you send us ten thousand rupees." This is extortion, and punishable as such: but it is not robbery, unless Z is put in fear of the instant death of his child.

391. Dacoity. When five or more persons conjointly commit or attempt to commit a robbery, or where the whole number of persons conjointly committing or attempting to commit a robbery, and persons present and aiding such commission or attempt, amount to five or more every person so committing, attempting or aiding, is said to commit "dacoity".

392. Punishment for robbery. Whoever commits robbery shall be punished with rigorous imprisonment for a term which ¹[shall not be less than three years nor more than] ten years, and shall also be liable to fine ; and, if the robbery be committed on the highway ²[* * *] the imprisonment may be extended to fourteen years.

393. Attempt to commit robbery. Whoever attempts to commit robbery shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

394. Voluntarily causing hurt in committing robbery. If any person, in committing or in attempting to commit robbery, voluntarily causes hurt, such person, and any other person jointly

¹Subs. by the Criminal Laws (Amdt.) Ordinance, 1980 (3 of 1980), ss.7&10, for "may extend to".

²Omitted by Act VII of 1993, s.2.

concerned in committing or attempting to commit such robbery, shall be punished with ¹[imprisonment for life], or with rigorous imprisonment for a term which ²[shall not be less than four years nor more than] ten years, and shall also be liable to fine.

395. Punishment for dacoity. Whoever commits dacoity shall be punished with ¹[imprisonment for life], or with rigorous imprisonment for a term which ²[shall not be less than four years nor more than] ten years, and shall also be liable to fine.

396. Dacoity with murder. If anyone of five or more persons, who are conjointly committing dacoity, commits murder in so committing dacoity, every one of those person shall be punished with death, or ¹[imprisonment for life], or rigorous imprisonment for a term which ²[shall not be less than four years nor more than] ten years, and shall also be liable to fine.

397. Robbery or dacoity with attempt to cause death or grievous hurt. If, at the time of committing robbery or dacoity, the offender uses any deadly weapon, or causes grievous hurt to any person, or attempts to cause death or grievous hurt to any person, the imprisonment with which such offender shall be punished shall not be less than seven years.

398. Attempt to commit robbery or dacoity when armed with deadly weapon. If, at the time of attempting to commit robbery or dacoity, the offender is armed with any deadly weapon, the imprisonment with which such offender shall be punished shall not be less than seven years.

399. Making preparation to commit dacoity. Whoever makes any preparation for committing dacoity, shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

400. Punishment for belonging to gang of dacoits. Whoever, at any time after the passing of this Act, shall belong to a gang of persons associated for the purpose of habitually committing dacoity, shall be punished with ¹[imprisonment for life], or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

401. Punishment for belonging to gang of thieves. Whoever, at any time after the passing of this Act, shall belong to any wandering or other gang of persons associated for the purpose of habitually committing theft or robbery, and not being a gang of thugs or dacoits, shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

402. Assembling for purpose of committing dacoity. Whoever, at any time after the passing of this Act, shall be one of five or more persons assembled for the purpose of committing dacoity, shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

³[OF HIJACKING]

402A. Hijacking. Whoever unlawfully, by the use or show of force or by threats of any kind, seizes, or exercises control of, an aircraft is said to commit hijacking.

¹Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch., for "transportation for life".

²Subs. by the Criminal Laws (Amdt.) Ordinance, 1980 (3 of 1980), ss.7&10, for "may extend to".

³Ins. by the Pakistan Penal Code (Second Amendment) Ordinance, 1981 (30 of 1981), s. 2.

402B. Punishment for hijacking. Whoever commits, or conspires or attempts to commit, or abets the commission of, hijacking shall be punished with death or imprisonment for life, and shall also be liable to forfeiture of property and fine.

402C. Punishment for harbouring hijacker, etc. Whoever knowingly harbours any person whom he knows or has reason to believe to be a person who is about to commit or has committed or abetted an offence of hijacking, or knowingly permits any such persons to meet or assemble in any place or premises in his possession or under his control, shall be punished with ¹[**] imprisonment for life, and shall also be liable to fine.]

Of Criminal Misappropriation of Property

403. Dishonest misappropriation of property. Whoever dishonestly misappropriates or converts to his own use any moveable property, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine or with both.

Illustrations

- (a) A takes property belonging to Z out of Z's possession in good faith, believing, at the time when he takes it, that the property belongs to himself. A is not guilty of theft; but if A, after discovering his mistake, dishonestly appropriates the property to his own use, he is guilty of an offence under this section.
- (b) A, being on friendly terms with Z, goes into Z's library in Z's absence and takes away a book without Z's express consent. Here, if A was under the impression, that he had Z's implied consent to take the book for the purpose of reading it, A has not committed theft. But if A afterwards sells the book for his own benefit, he is guilty of an offence under this section.
- (c) A and B, being joint owners of a horse, A takes the horse out of B's possession, intending to use it. Here, as A has a right to use the horse, he does not dishonestly misappropriate it. But, if A sells the horse and appropriates the whole proceeds to his own use, he is guilty of an offence under this section.

Explanation 1.— A dishonest misappropriation for a time only is a misappropriation within the meaning of this section.

Illustration

A finds a Government promissory note belonging to Z, bearing a blank endorsement. A, knowing that the note belongs to Z, pledges it with a banker as a security for a loan, intending at a future time to restore it to Z. A has committed an offence under this section.

Explanation 2.— A person who finds property not in the possession of any other person, and takes such property for the purpose of protecting it for, or of restoring it to, the owner, does not take or misappropriate it dishonestly, and is not guilty of an offence; but he is guilty of the offence above defined, if he appropriates it to his own use, when he knows or has the means of discovering the owner, or before he has used reasonable means to discover and give notice to the owner and has kept the property a reasonable time to enable the owner to claim it.

¹ Omitted by Criminal Laws (Amendment) Act, 2025 (Act No. XXVII of 2025), s.3

What are reasonable means or what is a reasonable time in such a case, is a question of fact.

It is not necessary that the finder should know who is the owner of the property, or that any particular person is the owner of it, it is sufficient if, at the time of appropriating it, he does not believe it to be his own property, or in good faith believes that the real owner cannot be found.

Illustrations

- (a) A finds a rupee on the high-road, not knowing to whom the rupee belongs. A picks up the rupee. Here A has not committed the offence defined in this section.
- (b) A finds a letter on the road, containing a bank note. From the direction and contents of the letter he learns to whom the note belongs. He appropriates the note. He is guilty of an offence under this section.
- (c) A finds a cheque payable to bearer. He can form no conjecture as to the person who has lost the cheque. But the name of the person, who has drawn the cheque, appears. A knows that this person can direct him to the person on whose favour the cheque was drawn. A appropriates the cheque without attempting to discover the owner. He is guilty of an offence under this section.
- (d) A sees Z drop his purse with money in it. A picks up the purse with the intention of restoring it to Z, but afterwards appropriates it to his own use. A has committed an offence under this section.
- (e) A finds a purse with money, not knowing to whom it belongs; he afterwards discovers that it belongs to Z, and appropriates it to his own use. A is guilty of an offence under this section.
- (f) A finds a valuable ring, not knowing to whom it belongs. A sells it immediately without attempting to discover the owner. A is guilty of an offence under this section.

404. Dishonest misappropriation of property possessed by deceased person at the time of his death. Whoever dishonestly misappropriates or converts to his own use property, knowing that such property was in the possession of a deceased person at the time of that person's decease and has not since been in the possession of any person legally entitled to such possession, shall be punished with imprisonment of either description for a term which may extend to three years and shall also be liable to fine; and if the offender at the time of such person's decease was employed by him as a clerk or servant, the imprisonment may extend to seven years.

Illustration

Z dies in possession of furniture and money. His servant A, before the money comes into the possession of any person entitled to such possession, dishonestly misappropriates it. A has committed the offence defined in this section.

Of Criminal Breach of Trust

405. Criminal breach of trust. Whoever, being in any manner entrusted with property or with any dominion over property, dishonestly misappropriates or converts to his own use that property, or dishonestly uses or disposes of that property in violation of any direction of law prescribing the mode in which such trust is to be discharged, or of any legal contract, express or implied, which he has made

touching the discharge of such trust, or wilfully suffers any other person so to do, commits “criminal breach of trust”.

Illustrations

- (a) A, being executor to the will of a deceased person, dishonestly disobeys the law which directs him to divide the effects according to the will, and appropriates them to his own use. A has committed criminal breach of trust.
- (b) A is a warehouse-keeper. Z, going on a journey, entrusts his furniture to A, under a contract that it shall be returned on payment of a stipulated sum for warehouse-room. A dishonestly sells the goods. A has committed criminal breach of trust.
- (c) A, residing in ¹[Dacca], is agent for Z, residing at ²[Lahore]. There is an express or implied contract between A and Z, that all sums remitted by Z to A shall be invested by A, according to Z’s direction. Z, remits a lakh of rupees to A, with directions to A to invest the same in Company’s paper. A dishonestly disobeys the directions and employs the money in his own business. A has committed criminal breach of trust.
- (d) But if A, in the last illustration, not dishonestly but in good faith, believing that it will be more for Z’s advantage to hold shares in the Bank of Bengal, disobeys Z’s directions, and buys shares in the Bank of Bengal, for Z, instead of buying Company’s paper, here, though Z should suffer loss, and should be entitled to bring a civil action against A, on account of that loss, yet A, not having acted dishonestly, has not committed criminal breach of trust.
- (e) A, a revenue-officer, is entrusted with public money and is either directed by law, or bound by a contract, express or implied, with the Government, to pay into a certain treasury all the public money which he holds. A dishonestly appropriates the money. A has committed criminal breach of trust.
- (f) A, a carrier, is entrusted by Z with property to be carried by land or by water. A dishonestly misappropriates the property. A has committed criminal breach of trust.

406. Punishment for criminal breach of trust. Whoever commits criminal breach of trust shall be punished with imprisonment of either description for a term which may extend to ³[seven] years, or with fine, or with both.

407. Criminal breach of trust by carrier, etc. Whoever, being entrusted with property as a carrier, wharfinger or warehouse-keeper, commits criminal breach of trust in respect of such property, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

408. Criminal breach of trust by clerk or servant. Whoever, being a clerk or servant or employed as a clerk or servant, and being in any manner entrusted in such capacity with property, or with any dominion over property, commits criminal breach of trust in respect of that property, shall be

¹Subs. by the Federal Laws Revision and Declaration Act, 1951 (26 of 1951), s. 4 and III Sch., for “Calcutta”.

²Subs. *ibid.*, for “Delhi”.

³Subs. by Criminal Law (Amendment) Ordinance, 1981 (33 of 1981), s.2, for “three”.

punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

409. Criminal breach of trust by public servant, or by banker, merchant or agent. Whoever, being in any manner entrusted with property, or with any dominion over property in his capacity of a public servant or in the way of his business as a banker, merchant, factor, broker, attorney or agent, commits criminal breach of trust in respect of that property, shall be punished with ¹[imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Of the Receiving of Stolen Property

410. Stolen property. Property, the possession whereof has been transferred by theft, or by extortion, or by robbery, and property which has been criminally misappropriated or in respect of which ²*** criminal breach of trust has been committed, is designated as “stolen property”, ³[whether the transfer has been made, or the misappropriation or breach of trust has been committed, within or without ⁴[Pakistan]]. But, if such property subsequently comes into the possession of a person legally entitled to the possession thereof, it then ceases to be stolen property.

411. Dishonestly receiving stolen property. Whoever dishonestly receives or retains any stolen property, knowing or having reason to believe the same to be stolen property, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

412. Dishonestly receiving property stolen in the commission of a dacoity. Whoever dishonestly receives or retains any stolen property, the possession whereof he knows or has reason to believe to have been transferred by the commission of dacoity, or dishonestly receives from a person, whom he knows or has reason to believe to belong or to have belonged to a gang of dacoits, property which he knows or has reason to believe to have been stolen, shall be punished with ⁵[imprisonment for life], or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

413. Habitually dealing in stolen property. Whoever habitually receives or deals in property which he knows or has reason to believe to be stolen property, shall be punished with ⁵[imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

414. Assisting in concealment of stolen property. Whoever voluntarily assists in concealing or disposing of or making away with property which he knows or has reason to believe to be stolen property, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

Of Cheating

415. Cheating. Whoever, by deceiving any person, fraudulently or dishonestly induces the person so deceived to deliver any property to any person, or to consent that any person shall retain any

¹Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch., for “transportation for life”.

²The word “the” before the words “offence of” was rep. by the Amending Act, 1891 (12 of 1891), and the words “offence of” were rep. by s. 9 of the Indian Penal Code Amdt. Act, 1882 (8 of 1882).

³Ins. by Act 8 of 1882, s. 9.

⁴Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., (w.e.f. 14th October, 1955), for “the Provinces and the Capital of the Federation” which had been subs. by A. O., 1949, Arts. 3(2) and 4, for “British India”.

⁵Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch., for “transportation for life”.

property, or intentionally induces the person so deceived to do or omit to do anything which he would not do or omit if he were not so deceived, and which act or omission causes or is likely to cause damage or harm to that person ¹[or any other person] in body, mind, reputation or property, is said to “cheat”.

Explanation.— A dishonest concealment of facts is a deception within the meaning of this section.

Illustrations

- (a) A, by falsely pretending to be in the Civil Service, intentionally deceives Z, and thus dishonestly induces Z to let him have on credit goods for which he does not mean, to pay. A cheats.
- (b) A, by putting a counterfeit mark on an article, intentionally deceives Z into a belief that this article was made by a certain celebrated manufacturer, and thus dishonestly induces Z to buy and pay for the article. A cheats.
- (c) A, by exhibiting to Z a false sample of an article, intentionally deceives Z into believing that the article corresponds with the sample, and thereby dishonestly induces Z to buy and pay for the article. A cheats.
- (d) A, by tendering in payment for an article a bill on a house with which A keeps no money, and by which A expects that the bill will be dishonoured, intentionally deceives Z, and thereby dishonestly induces Z to deliver the article, intending not to pay for it. A cheats.
- (e) A, by pleading as diamonds articles, which he knows are not diamonds intentionally deceives Z, and thereby dishonestly induces Z to lend money. A cheats.
- (f) A, intentionally deceives Z into a belief that A means to repay any money that Z may lend to him and thereby dishonestly induces Z to lend him money, A not intending to repay it. A cheats.
- (g) A intentionally deceives Z into a belief that A means to deliver to Z a certain quantity of indigo plant which he does not intend to deliver, and thereby dishonestly induces Z to advance money upon the faith of such delivery. A cheats ; but if A, at the time of obtaining the money, intends to deliver the indigo plant, and afterwards breaks his contract and does not deliver it, he does not cheat, but is liable only to a civil action for breach of contract.
- (h) A intentionally deceives Z into a belief that A has performed A’s part of a contract made with Z, which he has not performed, and thereby dishonestly induces Z to pay money. A cheats.
- (i) A sells and conveys an estate to B. A, knowing that in consequence of such sale he has no right to the property, sells or mortgages the same to Z, without disclosing the fact of the previous sale and conveyance to B, and receives the purchase or mortgage money from Z. A cheats.

¹Ins. by the Pakistan Penal Code (Amdt.) Ordinance, 1980 (41 of 1980), s.2.

416. Cheating by personation. A person is said to “cheat by personation” if he cheats by pretending to be some other person, or by knowingly substituting one person for another, or representing that he or any other person is a person other than he or such other person really is.

Explanation.— The offence is committed whether the individual personated is a real or imaginary person.

Illustrations

- (a) A cheats by pretending to be a certain rich banker of the same name. A cheats by personation.
- (b) A cheats by pretending to be B, a person who is deceased. A cheats by personation.

417. Punishment for cheating. Whoever cheats shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

418. Cheating with knowledge that wrongful loss may ensue to person whose interest offender is bound to protect. Whoever cheats with the knowledge that he is likely thereby to cause wrongful loss to a person whose interest in the transaction to which the cheating relates, he was bound either by law, or by legal contract, to protect, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

419. Punishment for cheating by personation. Whoever cheats by personation shall be punished with imprisonment of either description for a term which may extend to ¹[seven] years, or with fine, or with both.

420. Cheating and dishonestly inducing delivery of property. Whoever cheats and thereby dishonestly induces the person deceived to deliver any property to any person, or to make, alter or destroy the whole or any part of a valuable security, or anything which is signed or sealed, and which is capable of being converted into a valuable security, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Of Fraudulent Deeds and Dispositions of Property

421. Dishonest or fraudulent removal or concealment of property to prevent distribution among creditors. Whoever dishonestly or fraudulently removes, conceals or delivers to any person, or transfers or causes to be transferred to any person, without adequate consideration, any property, intending thereby to prevent, or knowing it to be likely that he will thereby prevent, the distribution of that property according to law among his creditors or the creditors of any other person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

422. Dishonestly or fraudulently preventing debt being available for creditors. Whoever dishonestly or fraudulently prevents any debt or demand due to himself or to any other person from being made available according to law for payment of his debts or the debts of such other person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

¹Subs. by the Criminal Law (Amdt.) Ord. 1981 (33 of 1981), s. 2, for “three”.

423. Dishonest or fraudulent execution of deed of transfer containing false statement of consideration. Whoever dishonestly or fraudulently signs, executes or becomes a party to any deed or instrument which purports to transfer or subject to any charge any property, or any interest therein, and which contains any false statement relating to the consideration for such transfer or charge, or relating to the person or persons for whose use or benefit it is really intended to operate, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

424. Dishonest or fraudulent removal or concealment of property. Whoever dishonestly or fraudulently conceals or removes any property of himself or any other person, or dishonestly or fraudulently assists in the concealment or removal thereof, or dishonestly releases any demand or claim to which he is entitled, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Of Mischief

425. Mischief. Whoever, with intent to cause, or, knowing that he is likely to cause, wrongful loss or damage to the public or to any person, causes the destruction of any property, or any such change in any property or in the situation thereof as destroys or diminishes its value or utility, or affects it injuriously, commits “mischief”.

Explanation 1.— It is not essential to the offence of mischief that the offender should intend to cause loss or damage to the owner of the property injured or destroyed. It is sufficient if he intends to cause, or knows that he is likely to cause, wrongful loss or damage to any person by injuring any property, whether it belongs to that person or not.

Explanation 2.— Mischief may be committed by an act affecting property belonging to the person who commits the act, or to that person and others jointly.

Illustrations

- (a) A voluntarily burns a valuable security belonging to Z intending to cause wrongful loss to Z. A has committed mischief.
- (b) A introduces water into an ice-house belonging to Z and thus causes the ice to melt, intending wrongful loss to Z. A has committed mischief.
- (c) A voluntarily throws into a river a ring belonging to Z, with the intention of thereby causing wrongful loss to Z. A has committed mischief.
- (d) A, knowing that his effects are about to be taken in execution in order to satisfy a debt due from him to Z, destroys those effects, with the intention of thereby preventing Z from obtaining satisfaction of the debt, and of thus causing damage to Z. A has committed mischief.
- (e) A having insured a ship, voluntarily causes the same to be cast away, with the intention of causing damage to the underwriters. A has committed mischief.
- (f) A, causes a ship to be cast away, intending thereby to cause damage to Z who has lent money on bottomry on the ship. A has committed mischief.

- (g) A, having joint property with Z in a horse, shoots the horse, intending thereby to cause wrongful loss to Z. A has committed mischief.
- (h) A causes cattle to enter upon a field belonging to Z, intending to cause and knowing that he is likely to cause damage to Z's crop. A has committed mischief.

426. Punishment for mischief. Whoever commits mischief shall be punished with imprisonment of either description for a term which may extend to three months, or with fine, or with both.

427. Mischief causing damage to the amount of fifty rupees. Whoever commits mischief and thereby causes loss or damage to the amount of fifty rupees or upwards, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

428. Mischief by killing or maiming animal of the value of ten rupees. Whoever commits mischief by killing, poisoning, maiming or rendering useless any animal or animals of the value of ten rupees or upwards, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

429. Mischief by killing or maiming cattle, etc., of any value or any animal of the value of fifty rupees. Whoever commits mischief by killing, poisoning, maiming or rendering useless, any elephant, camel, horse, mule, buffalo, bull, cow or ox, whatever may be the value thereof, or any other animal of the value of fifty rupees or upwards, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.

430. Mischief by injury to works of irrigation or by wrongfully diverting water. Whoever commits mischief by doing any act which causes, or which he knows to be likely to cause, a diminution of the supply of water for agricultural purposes, or for food or drink for human beings or for animals which are property, or for cleanliness or for carrying on any manufacture, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.

431. Mischief by injury to public road, bridge, river, or channel. Whoever commits mischief by doing any act which renders or which he knows to be likely to render any public road, bridge, navigable river or navigable channel, natural or artificial, impassable or less safe for travelling or conveying property, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.

432. Mischief by causing inundation or obstruction to public drainage attended with damage. Whoever commits mischief by doing any act which causes or which he knows to be likely to cause an inundation or an obstruction to any public drainage attended with injury or damage, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.

433. Mischief by destroying, moving or rendering less useful a light-house or sea-mark. Whoever commits mischief by destroying or moving any light-house or other light used as a sea-mark, or any sea-mark or buoy or other thing placed as a guide for navigators, or by any act which renders any such light-house, sea-mark, buoy or other such thing as aforesaid less useful as a guide for navigators, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

434. Mischief by destroying or moving etc., a landmark fixed by public authority. Whoever commits mischief by destroying or moving any land-mark fixed by the authority of a public servant, or by any act which renders such land-mark less useful as such, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

435. Mischief by fire or explosive substance with intent to cause damage to amount of one hundred or (in case of agricultural produce) ten rupees. Whoever commits mischief by fire or any explosive substance, intending to cause, or knowing it to be likely that he will thereby cause, damage to any property to the amount of one hundred rupees or upwards ¹[or (where the property is agricultural produce) ten rupees or upwards], shall be punished with imprisonment of either description for a term which ²[shall not be less than two years nor more than] seven years and shall also be liable to fine.

436. Mischief by fire or explosive substance with intent to destroy house, etc. Whoever commits mischief by fire or any explosive substance, intending to cause, or knowing it to be likely that he will thereby cause, the destruction of any building which is ordinarily used as a place of worship or as a human dwelling or as a place for the custody of property, shall be punished with ³[imprisonment for life], or with imprisonment of either description for a term which ⁴[shall not be less than three years nor more than] ten years, and shall also be liable to fine.

437. Mischief with intent to destroy or make unsafe a decked vessel or one of twenty tons burden. Whoever commits mischief to any decked vessel or any vessel of a burden of twenty tons or upwards, intending to destroy or render unsafe, or knowing it to be likely that he will thereby destroy or render unsafe, that vessel, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

438. Punishment for the mischief described in section 437 committed by fire or explosive substance. Whoever commits, or attempts to commit, by fire or any explosive substance, such mischief as is described in the last preceding section, shall be punished with ³[imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

439. Punishment for intentionally running vessel aground or ashore with intent to commit theft, etc. Whoever intentionally runs any vessel aground or ashore, intending to commit theft of any property contained therein or to dishonestly misappropriate any such property, or with intent that such theft or misappropriation of property may be committed, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

440. Mischief committed after preparation made causing death or hurt. Whoever commits mischief, having made preparation for causing to any person death, or hurt, or wrongful restraint, or fear of death, or of hurt, or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.

¹Ins. by the Penal Code (Amdt.) Act, 1882 (8 of 1882), s.10.

²Subs. by the Criminal Laws (Amdt.) Ord. 1980 (3 of 1980), ss. 11 and 12, for "may extend to".

³Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch., for "transportation for life".

⁴Subs. by Ord. 3 of 1980, s. 12, for "may extend to".

Of Criminal Trespass

441. Criminal trespass. Whoever enters into or upon property in the possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property,

or, having lawfully entered into or upon such property, unlawfully remains therewith intent thereby to intimidate, insult or annoy any such person, or with intent to commit an offence, is said to commit “criminal trespass”.

442. House-trespass. Whoever commits criminal trespass by entering into or remaining in any building, tent or vessel used as a human dwelling or any building used as a place for worship, or as a place for the custody of property, is said to commit “house-trespass”.

Explanation.— The introduction of any part of the criminal trespasser’s body is entering sufficient to constitute house-trespass.

443. Lurking house-trespass. Whoever commits house-trespass having taken precautions to conceal such house-trespass from some person who has a right to exclude or eject the trespasser from the building, tent or vessel which is the subject of the trespass, is said to commit “lurking house-trespass”.

444. Lurking house-trespass by night. Whoever commits lurking house-trespass after sunset and before sunrise, is said to commit “lurking house-trespass by night”.

445. House-breaking. A person is said to commit “house-breaking” who commits house-trespass if he effects his entrance into the house or any part of it in any of the six ways hereinafter described; or if, being in the house or any part of it for the purpose of committing an offence, or, having committed an offence therein, he quits the house or any part of it in any of such six ways, that is to say:—

Firstly.— If he enters or quits through a passage made by himself, or by any abettor of the house-trespass, in order to the committing of the house-trespass.

Secondly.— If he enters or quits through any passage not intended by any person, other than himself or an abettor of the offence, for human entrance ; or through any passage to which he has obtained access by scaling or climbing over any wall or building.

Thirdly.— If he enters or quits through any passage which he or any abettor of the house-trespass has opened, in order to the committing of the house-trespass by any means by which that passage was not intended by the occupier of the house to be opened.

Fourthly.— If he enters or quits by opening any lock in order to the committing of the house-trespass, or in order to the quitting of the house after a house-trespass.

Fifthly.— If he effects his entrance or departure by using criminal force or committing an assault, or by threatening any person with assault.

Sixthly.— If he enters or quits by any passage which he knows to have been fastened against such entrance or departure, and to have been unfastened by himself or by an abettor of the house-trespass.

Explanation.— Any out-house or building occupied with a house, and between which and such house there is an immediate internal communication, is part of the house within the meaning of this section.

Illustrations

- (a) A commits house-trespass by making a hole through the wall of Z's house, and putting his hand through the aperture. This is house-breaking.
- (b) A commits house-trespass by creeping into a ship at a port-hole between decks. This is house-breaking.
- (c) A commits house-trespass by entering Z's house, through a window. This is house-breaking.
- (d) A commits house-trespass by entering Z's house through the door, having opened a door which was fastened. This is house-breaking.
- (e) A commits house-trespass by entering Z's house through the door having lifted a latch by putting a wire through a hole in the door. This is house-breaking.
- (f) A finds the key of Z's house door, which Z had lost, and commits house-trespass by entering Z's house, having opened the door with that key. This is house-breaking.
- (g) Z is standing in his doorway. A forces a passage by knocking Z down, and commits house-trespass by entering the house. This is house-breaking.
- (h) Z, the door-keeper of Y, is standing in Y's doorway. A commits house-trespass by entering the house, having deterred Z from opposing him by threatening to beat him. This is house-breaking.

446. House-breaking by night. Whoever commits house-breaking after sunset and before sunrise, is said to commit "house-breaking by night".

447. Punishment for criminal trespass. Whoever commits criminal trespass shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to ¹[one thousand five hundred rupees], or with both.

448. Punishment for house-trespass. Whoever commits house-trespass shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to ¹[three thousand rupees], or with both.

449. House-trespass in order to commit offence punishable with death. Whoever commits house-trespass in order to the committing of any offence punishable with death, shall be punished with ²[imprisonment for life], or with rigorous imprisonment for a term not exceeding ten years, and shall also be liable to fine.

¹Subs. by Ord. 86 of 2002, s. 2 and Sch., I, for "five hundred rupees and one thousand rupees".

²Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch., for "transportation for life".

450. House-trespass in order to commit offence punishable with imprisonment for life. Whoever commits house-trespass in order to the committing of any offence punishable with ¹[imprisonment for life], shall be punished with imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine.

451. House-trespass in order to commit offence punishable with imprisonment. Whoever commits house-trespass in order to the committing of any offence punishable with imprisonment, shall be punished with imprisonment of either description for a term which may extend to two years, and shall also be liable to fine; and if the offence intended to be committed is theft, the term of the imprisonment may be extended to seven years.

452. House-trespass after preparation for hurt, assault or wrongful restraint. Whoever commits house-trespass, having made preparation for causing hurt to any person or for assaulting any person, or for wrongfully restraining any person, or for putting any person in fear of hurt, or of assault, or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

453. Punishment for lurking house-trespass or house-breaking. Whoever commits lurking house-trespass or house-breaking, shall be punished with imprisonment of either description for a term which may extend to two years, and shall also be liable to fine.

454. Lurking house-trespass or house-breaking in order to commit offence punishable with imprisonment. Whoever commits lurking house-trespass or house-breaking, in order to the committing of any offence punishable with imprisonment, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine ; and if the offence intended to be committed is theft, the term of the imprisonment may be extended to ten years.

455. Lurking house-trespass or house-breaking after preparation for hurt, assault or wrongful restraint. Whoever commits lurking house-trespass, or house-breaking, having made preparation for causing hurt to any person, or for assaulting any person, or for wrongfully restraining any person, or for putting any person in fear of hurt or of assault or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

456. Punishment for lurking house-trespass or house-breaking by night. Whoever commits lurking house-trespass by night, or house-breaking by night, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

457. Lurking house-trespass or house-breaking by night in order to commit offence punishable with imprisonment. Whoever commits lurking house-trespass by night, or house-breaking by night, in order to the committing of any offence punishable with imprisonment, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine ; and, if the offence intended to be committed is theft, the term of the imprisonment may be extended to fourteen years.

¹Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch., for "transportation for life".

458. Lurking house-trespass or house-breaking by night after preparation for hurt, assault or wrongful restraint. Whoever commits lurking house-trespass by night or house-breaking by night, having made preparation for causing hurt to any person or for assaulting any person, or for wrongfully restraining any person, or for putting any person in fear of hurt, or of assault, or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to fourteen years, and shall also be liable to fine.

¹**[459. Hurt caused whilst committing lurking house-trespass or house-breaking.—** Whoever, whilst committing lurking house-trespass or house-breaking, causes hurt to any person or attempts to commit *qatl* of, or hurt to, any person, shall be punished with imprisonment for life, or imprisonment of either description for a term which may extend to ten years, and shall also be liable to the same punishment for committing *qatl* or causing hurt or attempting to cause *Qatl* or hurt as is specified in Chapter XVI of this Code.]

¹**[460. Persons jointly concerned in lurking house-trespass or house-breaking by night punishable for *qatl* or hurt caused by one of them.—** If, at the time of the committing of lurking house-trespass by night or house-breaking by night any person guilty of such offence shall voluntarily cause or attempt to commit *qatl* of, or hurt to, any person, every person jointly concerned in committing such lurking house-trespass by night, or house-breaking by night, shall be punished with imprisonment for life or, with imprisonment of either description for a term which may extend to ten years and shall also be liable to the same punishment for committing *qatl* or causing hurt to attempting to cause *qatl* or hurt as is specified in Chapter XVI of this Code.]

461. Dishonestly breaking open receptacle containing property.— Whoever dishonestly or with intent to commit mischief breaks open or unfastens any closed receptacle which contains or which he believes to contain property, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

462. Punishment for same offence when committed by person entrusted with custody.— Whoever, being entrusted with any closed receptacle which contains or which he believes to contain property, without having authority to open the same, dishonestly, or with intent to commit mischief, breaks open or unfastens that receptacle, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

THE PAKISTAN CODE ²[CHAPTER XVII A

OF OFFENCES RELATING TO OIL AND GAS ETC

462A. Definition.— In this chapter, unless there is anything repugnant in the subject or context:

- (a) "distribution" means the activity of transporting petroleum through pipelines and associated facilities. In case of natural gas, distribution means the activity of transporting natural gas through pipelines and associated facility at a pressure which would not ordinarily be expected to exceed three hundred per square inch gauge (psig) or such pressure as the relevant Regulatory Authority may prescribe from time to time;

¹Subs. by Act II of 1997, ss. 8 & 9.

²Ins. by Act XX of 2011, s. 2.

495. Same offence with concealment of former marriage from person with whom subsequent marriage is contracted. Whoever commits the offence defined in the last preceding section having concealed from the person with whom the subsequent marriage is contracted, the fact of the former marriage, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

496. Marriage ceremony fraudulently gone through without lawful marriage. Whoever, dishonestly or with a fraudulent intention, goes through the ceremony of being married, knowing that he is not thereby lawfully married, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

¹[496A. Enticing or taking away or detaining with criminal intent a woman.] Whoever takes or entices away any woman with intent that she may have illicit intercourse with any person, or conceals or detains with that intent any woman, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

496B. Fornication.— (1) A man, and woman not married to each other are said to commit fornication if they willfully have sexual intercourse with one another.

(2) Whoever commits fornication shall be punished with imprisonment for a term which may extend to five years and shall also be liable to fine not exceeding ten thousand rupees.

496C. Punishment for false accusation of fornication.— Whoever brings or levels or gives evidence of false charge of fornication against any person, shall be punished with imprisonment for a term which may extend to five years and shall also be liable to fine not-exceeding ten thousand rupees:

Provided that a Presiding Officer of a Court dismissing a complaint under section 203C of the Code of Criminal Procedure, 1898 and after providing the accused an opportunity to show cause if satisfied that an offence under this section has been committed shall not require any further proof and shall forthwith proceed to pass the sentence.]

497. [Adultery.] Rep. by the Offence of Zina (Enforcement of Hudood) Ordinance, 1979 (VII of 1979), s. 19 (w.e.f the 10th day of February, 1979).

498. [Enticing or taking away or detaining with criminal intent a married woman.] Rep. by the Offence of Zina (Enforcement of Hudood) Ordinance, 1979 (VII of 1979), s. 19 (w.e.f the 10th day of February, 1979).

²[CHAPTER XXA

OF OFFENCES AGAINST WOMEN

498A. Prohibition of depriving women from inheriting property.— whoever by deceitful or illegal means deprives any woman from inheriting any movable or immovable property at the time of opening of succession shall be punished with imprisonment for either description for a term which may extend to ten years but not be less than five years or with a fine of one million rupees or both.

¹Ins. by Act VI of 2006, ss.6 & 7.

²Ins. by Act XXVI of 2011, s. 3.

498B. Prohibition of forced marriage.— whoever coerces or in any manner whatsoever compels a woman to enter into marriage shall be punished with imprisonment of either description for a term, which may extend to seven years or for a term which shall not be less than three years and shall also be liable to fine of five hundred thousand rupees ¹[:]

¹[Provided that in case of a female child as defined in the Child Marriage Restraint Act, 1929 (XIX of 1929), or a non-Muslim woman, the accused shall be punished with imprisonment of either description for a term which may extend to ten years but shall not be less than five years and shall also be liable to fine which may extend to one million rupees.]

498C. Prohibition of marriage with the Holy Quran.— Whoever compels or arranges or facilitates the marriage of a woman with the Holy Quran shall be punished with imprisonment of either description which may extend to seven years which shall not be less than three years and shall be liable to fine of five hundred thousand rupees.

Explanation.— Oath by a woman on Holy Quran to remain unmarried for the rest of her life or, not to claim her share of inheritance shall be deemed to be marriage with the Holy Quran.]

CHAPTER XXI OF DEFAMATION

499. Defamation. Whoever by words either spoken or intended to be read, or by signs or by visible representations, makes or publishes any imputation concerning any person intending to harm, or knowing or having reason to believe that such imputation will harm, the reputation of such person, is said, except in the cases hereinafter excepted, to defame that person ²[.]

(2) 2* * * * * * *

Explanation 1.— It may amount to defamation to impute anything to a deceased person, if the imputation would harm the reputation of that person if living, and is intended to be hurtful to the feelings of his family or other near relatives.

Explanation 2.— It may amount to defamation to make an imputation concerning a company or an association or collection of persons as such.

Explanation 3.— An imputation in the form of an alternative or expressed ironically, may amount to defamation.

Explanation 4.— No imputation is said to harm a person's reputation, unless that imputation directly or indirectly, in the estimation of others, lowers the moral or intellectual character of that person, or lowers the character of that person in respect of his caste or of his calling, or lowers the credit of that person, or causes it to be believed that the body of that person is in a loathsome state, or in a state generally considered as disgraceful.

¹Sub. & added by Act IV of 2017, s.2.

²Subs. and omitted by Act IV of 1986, s.2.

Illustrations

- (a) A says—"Z is an honest man ; he never stole B's watch" ; intending to cause it to be believed that Z did steal B's watch. This is defamation, unless it fall within one of the exceptions.
- (b) A is asked who stole B's watch. A points to Z, intending to cause it to be believed that Z stole B's watch. This is defamation, unless it fall within one of the exceptions.
- (c) A draws a picture of Z running away with B's watch, intending it to be believed that Z stole B's watch. This is defamation, unless it fall within one of the exceptions.

First Exception.— Imputation of truth which public good requires to be made or published. It is not defamation to impute anything which is true concerning any person, if it be for the public good that the imputation should be made or published. Whether or not it is for the public good is a question of fact.

Second Exception. Public conduct of public servants.— It is not defamation to express in good faith any opinion whatever respecting the conduct of a public servant in the discharge of his public functions, or respecting his character, so far as his character appears in that conduct, and no further.

Third Exception. Conduct of any person touching any public question. It is not defamation to express in good faith any opinion whatever respecting the conduct of any person touching any public question, and respecting his character, so far as his character appears in that conduct, and no further.

Illustration

It is not defamation in A to express in good faith any opinion whatever respecting Z's conduct in petitioning Government on a public question in signing or requisition for a meeting on a public question, in presiding or attending at such meeting, in forming or joining any society which invites the public support, in voting or canvassing for a particular candidate for any situation in the efficient discharge of the duties of which the public is interested.

Fourth Exception.— Publications of reports of proceedings of Courts. It is not defamation to publish a substantially true report of the proceedings of a Court of Justice, or of the result of any such proceedings.

Explanation.— A Justice of the Peace or other officer holding an enquiry in open Court preliminary to a trial in a Court of Justice, is a Court within the meaning of the above section.

Fifth Exception.— Merits of case decided in Court or conduct of witnesses and others concerned. It is not defamation to express in good faith any opinion whatever respecting the merits of any case, civil or criminal, which has been decided by a Court of Justice, or respecting the conduct of any person as a party, witness or agent, in any such case, or respecting the character of such person, as far as his character appears in that conduct, and no further.

Illustrations

- (a) A says—"I think Z's evidence on that trial is so contradictory that he must be stupid or dishonest." A is within this exception if he says this in good faith, inasmuch as the opinion which he expresses respects Z's character as it appears in Z's conduct as a witness, and no further.
- (b) But if A says—"I do not believe what Z asserted at that trial because I know him to be a man without veracity". A is not within this exception, inasmuch as the opinion which he expresses of Z's character, is an opinion not founded on Z's conduct as a witness.

Sixth Exception.— Merits of public performance. It is not defamation to express in good faith any opinion respecting the merits of any performance which its author has submitted to the judgment of the public, or respecting the character of the author so far as his character appears in such performance, and no further.

Explanation.— A performance may be submitted to the judgment of the public expressly or by acts on the part of the author which imply such submission to the judgment of the public.

Illustrations

- (a) A person who publishes a book, submits that book to the judgment of the public.
- (b) A person who makes a speech in public, submits that speech to the judgment of the public.
- (c) An actor or singer who appears on a public stage, submits his acting or singing to the judgment of the public.
- (d) A says of a book published by Z—"Z's book is foolish : Z must be a weak man. Z's book is indecent ; Z must be a man of impure mind." A is within this exception, if he says this in good faith, inasmuch as the opinion which he expresses of Z respects Z's character only so far as it appears in Z's book, and no further.
- (e) But if A says—"I am not surprised that Z's book is foolish and indecent, for he is a weak man and a libertine." A is not within this exception, inasmuch as the opinion which he expresses of Z's character is an opinion not founded on Z's book.

Seventh Exception.— Censure passed in good faith by person having lawful authority over another. It is not defamation in a person having over another any authority, either conferred by law or arising out of a lawful contract made with that other, to pass in good faith any censure on the conduct of that other in matters to which such lawful authority relates.

Illustration

A Judge censuring in good faith the conduct of a witness, or of an officer of the Court ; a head of a department censuring in good faith those who are under his orders ; a parent censuring in good faith a child in the presence of other children ; a schoolmaster, whose authority is derived from a parent, censuring in good faith a pupil in the presence of other pupils ; a master censuring a servant in good

faith for remissness in service ; a banker censuring in good faith the cashier of his bank for the conduct of such cashier as such cashier-are within this exception.

Eighth Exception.— Accusation preferred in good faith to authorized person. It is not defamation to prefer in good faith an accusation against any person to any of those who have lawful authority over that person with respect to the subject matter of accusation.

Illustration

If A in good faith accuses Z before a Magistrate ; if A in good faith complains of the conduct of Z, a servant, to Z's master ; if a in good faith complains of the conduct of Z, a child, to Z's father-A is within this exception.

Ninth Exception.— Imputation made in good faith by person for protection of his or other's interest. It is not defamation to make an imputation on the character of another, provided that the imputation be made in good faith for the protection of the interest of the person making it, or of any other person, or for the public good.

Illustrations

- (a) A, a shopkeeper, says to B, who manages his Business—"Sells nothing to Z unless he pays you ready money, for I have no opinion of his honesty." A is within the exception, if he has made this imputation on Z in good faith for the protection of his own interests.
- (b) A, a Magistrate, in making a report to his own superior officer, casts an imputation on the character of Z. Here, if the imputation is made in good faith, and for the public good. A is within the exception.

Tenth Exception.— Caution intended for good of person to whom conveyed or for public good. It is not defamation to convey a caution, in good faith, to one person against another, provided that such caution be intended for the good of the person to whom it is conveyed, or of some person in whom that person is interested, or for the public good.

1500. Punishment for defamation. Whoever defames another shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both ²[:]

²[Provided that the originator of the defamatory imputation shall be punished with imprisonment of either description for a term which may extend to five years, or with fine which shall not be less than one hundred thousand rupees, or with both.

Explanation.—“Originator” means the initiator of a defamatory imputation.]

¹In this section for the word "simple" the word "rigorous" has been subs. in its application to the Province of West Pakistan by (W. P. Act 32 of 1964), s. 2.

²Subs. and Ins. by Act IX of 04, ss.7,8.

¹501. Printing or engraving matter known to be defamatory. Whoever prints or engraves any matter, knowing or having good reason to believe that such matter is defamatory of any person, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.

502. Sale of printed or engraved substance containing defamatory matter. Whoever sells or offers for sale any printed or engraved substance containing defamatory matter, knowing that it contains such matter, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.

²[502A. Trial of offences under this Chapter.— Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), the Court of Session shall have the jurisdiction to try an offence under this Chapter and decide it within a period of ninety days.]

CHAPTER XXII

OF CRIMINAL INTIMIDATION, INSULT AND ANNOYANCE

503. Criminal intimidation. Whoever threatens another with any injury to his person, reputation or property, or to the person or reputation of any one in whom that person is interested, with intent to cause alarm to that person, or to cause that person to do any act which he is not legally bound to do, or to omit to do any act which that person is legally entitled to do, as the means of avoiding the execution of such threat, commits criminal intimidation.

Explanation.— A threat to injure the reputation of any deceased person in whom the person threatened is interested, is within this section.

Illustration

A, for the purpose of inducing B to desist from prosecuting a civil suit, threatens to burn B's house. A is guilty of criminal intimidation.

504. Intentional insult with intent to provoke breach of the peace. Whoever intentionally insults, and thereby gives provocation to any person, intending or knowing it to be likely that such provocation will cause him to break the public peace, or to commit any other offence, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

³[505. Statement conducing to public mischief.— (1) Whoever makes, publishes or circulates any statement, rumour or report,

- (a) with intent to cause or incite, or which is likely to cause or incite, any officer, soldier, sailor, or airman in the Army, Navy or Air Force of Pakistan to mutiny or otherwise disregard or fail in his duty as such ; or

¹In this section for the word "simple" the word "rigorous" has been subs. in its application to the Province of West Pakistan by (W. P. Act 32 of 1964), s. 2.

²Subs. and Ins. by Act IX of 04, s.8.

³The original s. 505 have successively been amended by the Indian Penal Code (Amdt.) Act, 1898 (4 of 1898), s. 6, the Repealing and Amending Act 1927 (10 of 1927), s. 2 and Sch I, the Amending Act, 1934 (35 of 1934), s. 2 and Sch., A. O.1961, Art. 2 and Sch. (23-3-56), and the Criminal Law (Amdt.) Act, 1973 (6 of 1973), s. 2 (w.e.f. 28th July, 1973), to read as above.

- (b) with intent to cause, or which is likely to cause, fear or alarm to the public or to any section of the public whereby any person may be induced to commit an offence against the State or against the public tranquillity ; or
- (c) with intent to incite, or which is likely to incite, any class or community of persons to commit any offence against any other class or community,

shall be punished with imprisonment for a term which may extend to seven years and with fine.

(2) Whoever makes, publishes or circulates any statement or report containing rumour or alarming news with intent to create or promote, or which is likely to create or promote, on grounds of religion, race, place of birth, residence, language, caste or community or any other ground whatsoever, feelings of enmity, hatred or ill-will between different religious, racial, language or regional groups or castes or communities, shall be punished with imprisonment for a term which may extend to seven years and with fine.

Explanation.— It does not amount to an offence within the meaning of this section, when the person making, publishing or circulating any such statement, rumour or report has reasonable grounds for believing that such statement, rumour or report is true and makes, publishes or circulates it in good faith and without any such intent as aforesaid.]

506. Punishment for criminal intimidation. Whoever commits the offence of criminal intimidation shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both ;

If threat be to cause death or grievous hurt, etc. and if the threat be to cause death or grievous hurt, or to cause the destruction of any property by fire, or to cause an offence punishable with death or ¹[imprisonment for life], or with imprisonment for a term which may extend to seven years, or to impute unchastity to a woman, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

507. Criminal intimidation by an anonymous communication. Whoever commits the offence of criminal intimidation by an anonymous communication, or having taken precaution to conceal the name or abode of the person from whom the threat comes, shall be punished with imprisonment of either description for a term which may extend to two years, in addition to the punishment provided for the offence by the last preceding section.

508. Act caused by inducing person to believe that he will be rendered an object of the Divine displeasure. Whoever voluntarily causes or attempts to cause any person to do anything which that person is not legally bound to do or to omit to do anything which he is legally entitled to do, by inducing or attempting to induce that person to believe that he or any person in whom he is interested will become or will be rendered by some act of the offender an object of Divine displeasure if he does not do the thing which it is the object of the offender to cause him to do, or if he does the thing which it is the object of the offender to cause him to omit shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

¹Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch., for "Transportation".

Illustrations

- (a) A sits dhurna at Z's door with the intention of causing it to be believed that, by so sitting, he renders Z an object of Divine displeasure. A has committed the offence defined in this section.
- (b) A threatens Z that, unless Z performs a certain act, A will kill one of A's own children, under such circumstances that the killing would be believed to render Z an object of Divine displeasure. A has committed the offence defined in this section.

¹[509. Insulting modesty or causing sexual harassment.— Whoever,—

- (i) intending to insult the modesty of any woman, utters any word, makes any sound or gesture, or exhibits any object, intending that such word or sound shall be heard, or that such gesture or object shall be seen, by such woman, or intrudes upon the privacy of such woman;
- (ii) conduct sexual advances, or demand sexual favours or uses verbal or non-verbal communication or physical conduct of a sexual nature which intends to annoy, insult, intimidate or threaten the other person or commits such acts at the premises of workplace, or makes submission to such conduct either explicitly or implicitly a term or condition of an individual's employment, or makes submission to or rejection of such conduct by an individual a basis for employment decision affecting such individual, or retaliates because of rejection of such behaviour, or conducts such behaviour with the intention of unreasonably interfering with an individual's work performance or creating an intimidating, hostile, or offensive working environment;

shall be punished with imprisonment which may extend to three years or with fine up to five hundred thousand rupees or with both.

Explanation 1.— Such behaviour might occur in public place, including, but not limited to, markets, public transport, streets or parks, or it might occur in private places including, but not limited to workplaces, private gatherings, or homes.

Explanation 2.— Workplace means, the place of work or the premises where an organization or employer operates, this may be a specific building, factory, open area or a larger geographical area where the activities of the organization are carried out. Sexual advances may occur after working hours and outside workplace. It is the access that perpetrator has to the person being harassed by virtue of a job situation or job related functions and activities.].

510. Misconduct in public by a drunken person. Whoever, in a state of intoxication appears in any public place, or in any place which it is a trespass in him to enter, and there conducts himself in such a manner as to cause annoyance to any person, shall be punished with simple imprisonment for a term which may extend to ²[seven days but shall not be less than forty eight hours], or with fine which may extend to ²[one hundred thousand rupees but shall not be less than ten thousand rupees], or with both.

¹Subs. by Act I of 2010, s. 2.

²Subs. by Act XVIII of 2018, s.2.